

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

ARIES FINANCIAL, LLC, Appellant, v 12005 142ND STREET, LLC,
et al., Respondents, et al., Defendants.

Submitted January 29, 2018; decided March 27, 2018

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

In the Matter of the Claim of ERROL P. CAMPBELL, Respondent.
TDA INDUSTRIES, INC., Appellant; COMMISSIONER OF LABOR,
Respondent.

Submitted January 16, 2018; decided March 27, 2018

Reported below, 2017 NY Slip Op 92622(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ISAN CONTANT, Appellant, v WILLIAM A. KELLY,
Respondent.

Submitted January 29, 2018; decided March 27, 2018

Reported below, 153 AD3d 520.

Motion to vacate this Court's November 29, 2017 dismissal order granted [*see* 30 NY3d 1017 (2017)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

In the Matter of MAURICE DANIEL, Appellant, v BROOKLYN LAW SCHOOL, Respondent.

Submitted January 8, 2018; decided March 27, 2018

Reported below, 153 AD3d 708.

Motion for leave to appeal denied. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of DEMETRIUS C. and Another, Children Alleged to be Abused and Neglected. DAVID C., Respondent; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent. EPIFANIA C., Intervenor-Appellant.

In the Matter of EPIFANIA C., Appellant, v DAVID C., Respondent.

Submitted January 29, 2018; decided March 27, 2018

Reported below, 156 AD3d 521.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

HOEG CORPORATION, Appellant, v PEEBLES CORPORATION, Respondent.

Submitted January 29, 2018; decided March 27, 2018

Reported below, 153 AD3d 607.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]).

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION et al., Respondents, v CHING J. LU, Also Known as CHING JUNG LU, Appellant, and LONGJUN XIE, Defendant.

Submitted January 22, 2018; decided March 27, 2018

Reported below, 155 AD3d 551.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge WILSON taking no part.

In the Matter of STEVEN J. MAROCCIA, Appellant, v NEW YORK
STATE DEPARTMENT OF MOTOR VEHICLES, Respondent.

Submitted January 22, 2018; decided March 27, 2018

Reported below, 155 AD3d 1555.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of DEBORAH J. McCULLOCH, Executive Director
of Central New York Psychiatric Center, Respondent, v
MELVIN H., a Patient at Central New York Psychiatric
Center, Consecutive No. 263968, Appellant.

Decided March 27, 2018

Reported below, 156 AD3d 1480.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

JOHN P. MERY et al., Appellants, v FRANK EGINGER, Defendant,
and SOCIETY OF FRIENDS CHURCH, Also Known as the
POUGHKEEPSIE MONTHLY MEETING OF THE RELIGIOUS SOCI-
ETY OF FRIENDS and Another, Respondent.

Submitted February 13, 2018; decided March 27, 2018

Reported below, 149 AD3d 827.

Motion to vacate this Court's January 8, 2018 dismissal order granted [*see* 30 NY3d 1102 (2018)].

In the Matter of MICHAEL R., Appellant, v ALIESHA H., Respondent. (Proceeding No. 1.)

In the Matter of ALIESHA H., Respondent, v MICHAEL R., Appellant. (Proceeding No. 2.)

Submitted January 8, 2018; decided March 27, 2018

Reported below, 155 AD3d 1042.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

SETH MITCHELL, Appellant, v STATE OF NEW YORK, Respondent.

Submitted February 5, 2018; decided March 27, 2018

Reported below, 2017 NY Slip Op 83485(U).

Motion for reargument of motion for leave to appeal denied [see 30 NY3d 1037 (2017)].

TEDDY MOORE, Appellant, v FRANK GUERRA, Defendant, and CITY OF NEW YORK, et al., Respondents.

Submitted January 8, 2018; decided March 27, 2018

Reported below, 2017 NY Slip Op 95361(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GARY H. MOORE, Appellant, v SUPERINTENDENT OF COXSACKIE CORRECTIONAL FACILITY, Respondent.

Submitted February 5, 2018; decided March 27, 2018

Reported below, 153 AD3d 1545.

Motion for reconsideration of this Court's December 12, 2017 dismissal order denied [see 30 NY3d 1031 (2017)].

In the Matter of KEVIN P. SMITH, Appellant, v GREGORY LASAK et al., Respondents.

Submitted January 22, 2018; decided March 27, 2018

Reported below, 149 AD3d 845.

Motion for reconsideration of this Court's December 19, 2017 dismissal order denied [*see* 30 NY3d 1041 (2017)]. Motion for reargument of motion for leave to appeal denied.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted January 22, 2018; decided March 27, 2018

Reported below, 146 AD3d 576.

Motion for reargument denied [*see* 30 NY3d 416 (2017)].

WELLS FARGO BANK, N.A., Not in its Individual Capacity but Solely as Trustee for RMAC, PASS-THROUGH TRUST, SERIES 2010-A, Respondent, v ROBERT SHATLES, Also Known as ROBERT L. SHATLES, et al., Appellants, et al., Defendants.

Decided March 27, 2018

Reported below, 157 AD3d 750.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

WESTHAMPTON BEACH ASSOCIATES, LLC, Appellant, v INCORPORATED VILLAGE OF WESTHAMPTON BEACH et al., Respondents, et al., Defendants.

Submitted January 8, 2018; decided March 27, 2018

Reported below, 151 AD3d 793.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 5611).

[95 NE3d 562, 72 NYS3d 520]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CASIMIRO REYES, Respondent.

Argued January 3, 2018; decided February 15, 2018

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 16, 2016. The Appellate Division order, insofar as appealed from, modified, on the law, a judgment of the Supreme Court, Kings County (Albert Tomei, J.), which had convicted defendant, upon a jury verdict, of conspiracy in the second degree, theft of services and criminal possession of a weapon in the fourth degree. The modification consisted of (1) vacating the conviction of conspiracy in the second degree, (2) vacating the sentence imposed thereon, and (3) dismissing that count of the indictment.

People v Reyes, 137 AD3d 1060, affirmed.

HEADNOTE

Crimes — Conspiracy — Element of Agreement

Defendant's conviction of conspiracy in the second degree (Penal Law § 105.15) was not supported by legally sufficient evidence because there was no valid line of reasoning and permissible inferences from which a rational jury could have found the element of agreement proved beyond a reasonable doubt. To conclude that defendant's presence at various gang meetings at which the crime intended was discussed by gang members other than defendant was sufficient alone to establish agreement to join a plot would be to equate his passive act of "being present" with the affirmative act of "agreeing" to engage in a criminal conspiracy discussed at those assemblies. The law does not contain a presumption of agreement based on sheer presence at a meeting at which a conspiracy is discussed (*see* Penal Law § 105.00 *et seq.*), and mere knowledge of the existence and goals of a conspiracy does not itself make one a coconspirator.

APPEARANCES OF COUNSEL

Eric Gonzalez, District Attorney, Brooklyn (*Thomas M. Ross* and *Leonard Joblove* of counsel), for appellant.

Seymour W. James, Jr., *The Legal Aid Society*, New York City (*Allen Fallek* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed. Viewing the evidence in the light most

favorable to the People (*see People v Contes*, 60 NY2d 620, 621 [1983]), we conclude that the evidence is legally insufficient to support the conviction of conspiracy in the second degree (Penal Law § 105.15) because “there is [no] valid line of reasoning and permissible inferences from which a rational jury could have found the element[] of [agreement] proved beyond a reasonable doubt” (*People v Danielson*, 9 NY3d 342, 349 [2007] [internal quotation marks omitted]; *see generally People v Bleakley*, 69 NY2d 490, 495 [1987]).

“The elements of [a] conspiracy offense” generally may be characterized as: “first, the specific intent that a crime be performed; and second, an agreement with another person to engage in or cause that crime to be performed” (William C. Donnino, Practice Commentary, McKinney’s Cons Laws of NY, Book 38, Penal Law § 105.00). Indeed, “it is fundamental that [to] be convicted of conspiracy” (*People v Berkowitz*, 50 NY2d 333, 343 [1980]) “the defendant [must] enter[] into a criminal agreement with at least one other person” (*People v Treuber*, 64 NY2d 817, 818 [1985]). “‘[O]nce an illicit agreement is shown, the overt act of any conspirator may be attributed to other conspirators to establish the offense of conspiracy’” (*Berkowitz*, 50 NY2d at 341, quoting *People v McGee*, 49 NY2d 48, 57 [1979]).

Here, at the core of the People’s case is evidence of defendant’s presence at various gang meetings at which the crime intended was discussed by gang members other than defendant. Under the circumstances of this case, to conclude that defendant’s presence at such gatherings alone was sufficient to establish agreement to join a plot would be to equate his passive act of “being present” with the affirmative act of “agreeing” to engage in a criminal conspiracy discussed at those assemblies. The law does not contain a presumption of agreement based on sheer presence at a meeting at which a conspiracy is discussed (*see* Penal Law § 105.00 *et seq.*), and we share the view of the federal courts that mere “knowledge of the existence and goals of a conspiracy does not of itself make one a coconspirator” (*United States v Ceballos*, 340 F3d 115, 124 [2d Cir 2003] [internal quotation marks omitted]; *see generally United States v Shabani*, 513 US 10, 16 [1994] [providing that “the criminal agreement itself is the *actus reus*” of conspiracy]).

In so concluding, we are careful not to fix boundaries with respect to the circumstances that may give rise to an agreement. Conspiracy is criminalized to “protect society from the

dangers of concerted criminal activity” (*United States v Feola*, 420 US 671, 693 [1975]), the very nature of which does not lend itself to transparency. Whereas an agreement in a business context may be manifested with precision, namely, through a contract, a correspondence, or conspicuous dialogue, an agreement in the criminal realm typically would result from more clandestine and ambiguous activity.

Consequently, we decline to define—and therefore to limit—the circumstances giving rise to an agreement. On this record, however, we agree with the Appellate Division that there is no valid line of reasoning and permissible inferences from which a rational jury could have found the element of agreement proved beyond a reasonable doubt.

GARCIA, J. (dissenting). Defendant, a member of the Almighty Latin King Nation, was charged with conspiracy in the second degree in connection with an arson carried out by other gang members. His trial lasted three months. Two gang members testified pursuant to cooperation agreements. The intended victim of the arson attack—a former member of the gang—also testified. The People introduced evidence of defendant’s knowledge of the conspiracy and his agreement to cause or carry out its criminal purpose. Defendant was convicted of conspiracy. I disagree with the majority’s conclusion that this evidence, considered under the appropriate standard of review, was legally insufficient to support the verdict.

I.

“A verdict is legally sufficient when, viewing the facts in a light most favorable to the People, there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt” (*People v Danielson*, 9 NY3d 342, 349 [2007] [citations and internal quotation marks omitted]). In a sufficiency review, a court must “*marshal competent facts most favorable to the People* and determine whether, as a matter of law, a jury could logically conclude that the People sustained its burden of proof” (*id.* [emphasis added]). In conspiracy cases, “deference to the jury’s findings is especially important . . . because a conspiracy by its very nature is a secretive operation, and it is a rare case where all aspects of a conspiracy can be laid bare in court with the precision of a surgeon’s scalpel” (*United States v Applins*, 637 F3d 59, 76 [2d Cir 2011] [citation and internal quotation marks omitted]).

In New York, “[a] person is guilty of conspiracy in the second degree when, with intent that conduct constituting a class A felony be performed, he agrees with one or more persons to engage in or cause the performance of such conduct” (Penal Law § 105.15). The core of the conspiracy is the element of agreement, which will be found where there is a “concrete and unambiguous . . . expression of each actor’s intent to violate the law” (*People v Caban*, 5 NY3d 143, 149 [2005] [internal quotation marks omitted]).

II.

On March 1, 2010, members of the Borough Park Homicide tribe (BPH) of the Latin Kings firebombed the home of Juan Kuang. Defendant did not participate in the March 1 attack but was instead charged with conspiring to commit this act of arson. It is undisputed that the defendant was a member of BPH. The only issue is whether the evidence, viewed in a light most favorable to the People, was sufficient to establish that he entered into an agreement with his fellow gang members to commit this particular crime.

To properly evaluate the proof in this case, it is crucial to understand what led to the March 1 attack. In 2009, Kuang—a member of BPH—violated gang rules by dating a Latin Queen affiliated with a rival tribe. BPH’s leaders ordered him to either end the relationship or have her join BPH. Instead, Kuang quit the gang, a violation of gang rules that called for severe punishment. As a result, members of BPH began harassing Kuang and his family, leading to escalating violence.

The People put in proof of the following: (1) the BPH leadership structure and the roles and responsibilities of gang members; (2) defendant’s membership in BPH; (3) defendant’s participation in an earlier attack on a different residence associated with Kuang; and (4) defendant’s attendance at several meetings during which the proposed arson attack was discussed and planned. Together, this proof was sufficient to support the jury’s verdict.

The victim and the two cooperating gang members testified concerning the detailed leadership structure and internal security apparatus of the gang. All BPH members who are not a part of the leadership structure are considered “body members” and must attend weekly meetings, pay dues, pledge loyalty to the gang, and carry out missions on behalf of the gang. If a gang member violates a gang rule, they receive a beating. If

the gang member leaves the gang, the members will either “beat you down or if they can’t get you, they will get to your family.” Defendant was a Latin King for at least two years prior to his arrest.

As a response to Kuang’s perceived disloyalty to BPH, in February 2010, on at least one occasion, gang members attacked a residence associated with Kuang and his family. At some point, a group of BPH members went to this residence where some members threw rocks and other items at the house. Defendant himself told the police in a post-arrest statement that he went to this residence with other gang members who threw “rocks, bottles[,] buckets, pretty much anything they could find to throw and create damage to the house.” A group of BPH members subsequently threw Molotov cocktails at the windows, although the bottles apparently did not break through the glass. One of the cooperating witnesses at defendant’s trial testified that defendant was part of that group. Though defendant was not charged with any crimes relating to that attempted arson, the jury was permitted to consider the testimony as proof of defendant’s agreement in the conspiracy with which he was charged.

Later in February 2010, in response to the earlier attacks, Kuang stabbed a member of BPH—the brother of the gang’s president. Following the stabbing, the leader of BPH called an emergency meeting in Prospect Park to discuss a retaliatory mission. At that meeting, gang leaders informed the members that the mission would occur that night and would involve throwing Molotov cocktails into Kuang’s home. Members were selected for the mission but defendant was not chosen. Over the course of the day, two other meetings took place during which there was some discussion of the upcoming mission to firebomb Kuang’s apartment. At one of these meetings, there was a discussion about the failure of the prior attempt to firebomb an apartment associated with Kuang, but a gang leader insisted that although that “wasn’t done properly,” he knew “what to do now to make it done complete.”

Defendant was arrested prior to the actual firebombing and claimed responsibility for the attack—placing himself at the scene of the crime—but also stating he “was part of something but . . . didn’t do it.” Given the timing of his arrest, defendant’s claim that he was present was not true. But it is just as clear from his post-arrest statements that he knew significant details about the planned arson prior to its execution.

III.

I agree with the majority that defendant's presence at gang meetings alone is insufficient to establish agreement. I also agree with the general principle that an individual's knowledge of the goals of a conspiracy does not automatically make one a coconspirator. But the proof in this case cannot be examined in isolation: mere membership in the gang is not enough; mere knowledge of the plan is not enough; and a false confession does not establish defendant's participation. Properly marshaled as evidence, however, the proof was legally sufficient (*see United States v Sloan*, 65 F3d 149, 151 [10th Cir 1995], citing *United States v Porter*, 881 F2d 878, 887 [10th Cir 1989] ["An item of evidence, being but a single link in the chain of proof, need not prove conclusively the proposition for which it is offered. It need not even make that proposition appear more probable than not . . . It is enough if the item could reasonably show that a fact is slightly more probable than it would appear without that evidence . . . A brick is not a wall" (citations omitted)]).

In gang-related conspiracy prosecutions, evidence of the defendant's participation in a gang—while on its own is insufficient to support a conviction—is useful “to establish an agreement among the subjects, the purpose of the conspiracy and knowledge on the part of the[] defendant[]” (*United States v Sloan*, 65 F3d 149, 151 [10th Cir 1995]; *see also United States v Alviar*, 573 F3d 526, 536-537 [7th Cir 2009]). Indeed, “gang membership can be key to establishing criminal intent or agreement to conspire” (*United States v Sargent*, 98 F3d 325, 328 [7th Cir 1996]). Additionally, where the “evidence establishes that a particular gang has a specific illegal objective . . . evidence of gang membership may help to link gang members to that objective” (*United States v Garcia*, 151 F3d 1243, 1247 [9th Cir 1998]; *see United States v Iriarte-Ortega*, 113 F3d 1022, 1024 [9th Cir 1997]). Thus, “a jury may infer the existence of an agreement” from evidence of coordination between conspirators “for the accomplishment of a common purpose” (*Iriarte-Ortega*, 113 F3d at 1024).*

In this case, defendant, a sworn member of the Latin Kings, was charged with a conspiracy directly related to enforcing the

* The majority's reliance on *United States v Ceballos* for the proposition that knowledge of the goals of a conspiracy is insufficient to establish agreement is misplaced (340 F3d 115 [2d Cir 2003]). In *Ceballos*, the defendant supplied narcotics to a customer who then resold the drugs to undercover agents purportedly involved in a bribery scheme. The agents, by delaying

(n. cont'd)

rules and regulations governing gang membership and obligations. He admitted participating in retaliatory violence aimed at a rogue gang member, namely he stated he went with other Latin Kings to attack a residence associated with that member. When the target retaliated, defendant attended meetings—as a Latin King—during which the next, and most serious, attack on the victim was extensively planned. He demonstrated by his post-arrest claim of responsibility that he had absorbed key details of that plan at those gang meetings.

This evidence supports a “valid line of reasoning and permissible inferences from which a rational jury could have found the element of agreement proved beyond a reasonable doubt” (majority mem at 932). As the jury did here.

The Appellate Division, unlike this Court, may determine whether the weight of the evidence supports the verdict. Accordingly, I dissent, and would reverse the order of the Appellate Division and remit for a weight of the evidence review.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey and Wilson concur; Judge Garcia dissents in an opinion, in which Judge Feinman concurs.

Order, insofar as appealed from, affirmed, in a memorandum.

[95 NE3d 567, 72 NYS3d 525]

MICHAEL SOMEREVE et al., Respondents, v PLAZA CONSTRUCTION CORP., Appellant.

Argued February 14, 2018; decided April 3, 2018

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 18, 2016. The Appellate

payment to the customer, pressured that customer into introducing them to the supplier—Ceballos—to explain the reason the customer had not made timely payment. Shortly before arrests were made in the case, an agent had a call with Ceballos and explained the delay in payment was tied to a bribery scheme. The government argued, based solely on the call, that Ceballos was a coconspirator in that separate bribery scheme. The Second Circuit reversed the conviction for the bribery conspiracy, noting that Ceballos’s knowledge, gained from the call with the agent, did not equate to agreement to bribe public officials. There was no other evidence that Ceballos knew of, or participated in, the bribery scheme.

Division affirmed an order of the Supreme Court, New York County (Anil C. Singh, J.), which had granted plaintiffs' motion for partial summary judgment on their Labor Law § 240 (1) cause of action. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by this Court, properly made?"

Somereve v Plaza Constr. Corp., 136 AD3d 537, reversed.

HEADNOTE

Labor — Safe Place to Work — Premature Summary Judgment

An Appellate Division order granting plaintiffs' motion for partial summary judgment of liability on their Labor Law § 240 (1) claim was reversed, and the motion denied. As there was insufficient evidence concerning how the accident occurred, the requested discovery could aid in establishing what happened, and the note of issue was not due to be filed for another six months, summary judgment was prematurely granted.

APPEARANCES OF COUNSEL

Rafter & Associates PLLC, New York City (*Howard K. Fishman* of counsel), for appellant.

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Brian J. Isaac* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, plaintiffs' motion for partial summary judgment of liability on the Labor Law § 240 (1) claim denied, and the certified question answered in the negative.

Here, where there is insufficient evidence concerning how the accident occurred, the requested discovery could aid in establishing what happened, and the note of issue was not due to be filed for another six months, summary judgment was prematurely granted (*see Groves v Land's End Hous. Co.*, 80 NY2d 978, 980 [1992]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order reversed, with costs, plaintiffs' motion for partial summary judgment of liability on the Labor Law § 240 (1) claim denied, and certified question answered in the negative, in a memorandum.

[96 NE3d 205, 73 NYS3d 109]

ERIE INSURANCE EXCHANGE, Appellant, v J.M. PEREIRA & SONS, INC., et al., Respondents.

Decided March 22, 2018

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered June 30, 2017. The Appellate Division affirmed an order of the Supreme Court, Monroe County (Renee Forgensi Minarik, J.), which had, insofar as appealed from, denied plaintiff's motion for summary judgment. The following question was certified by the Appellate Division: "Was the order of this Court entered June 30, 2017, properly made?"

Plaintiff sought a declaration that it was not obligated to defend or indemnify defendant J.M. Pereira & Sons, Inc. in the underlying personal injury action, under a commercial liability umbrella policy that contained an exclusion for bodily injuries to defendant's employees arising out of and in the course of their employment or during the course of performing their duties related to defendant's business. The Appellate Division determined that the trial court properly denied plaintiff's motion for summary judgment inasmuch as plaintiff failed to establish, as a matter of law, that an exception to the exclusion containing a standard "follow the form" provision did not apply.

Erie Ins. Exch. v J.M. Pereira & Sons, Inc., 151 AD3d 1879, affirmed.

HEADNOTE

Insurance — Umbrella Policy — Exclusions

In an action seeking a declaration that plaintiff insurer was not obligated to defend or indemnify defendant corporation in an underlying personal injury action under the terms of a commercial liability umbrella policy, the Appellate Division properly determined that plaintiff was not entitled to summary judgment since plaintiff failed to establish, as a matter of law, that the loss was unambiguously excluded from the coverage of the policy.

APPEARANCES OF COUNSEL

Hurwitz & Fine, P.C., Buffalo (*Dan D. Kohane* of counsel), for appellant.

Woods Oviatt Gilman LLP, Rochester (*Robert D. Hooks* of counsel), for J.M. Pereira & Sons, Inc., respondent.

Fox Rothschild LLP, New York City (*Matthew J. Schenker* of counsel), for RPC, Inc., respondent.

Ricardo Vega and another, respondents, precluded.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. Plaintiff failed to establish, as a matter of law, that the “loss was unambiguously excluded from the coverage of [the] policy” (*Pioneer Tower Owners Assn. v State Farm Fire & Cas. Co.*, 12 NY3d 302, 307 [2009]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[96 NE3d 206, 73 NYS3d 110]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICHOLAS BROOKS, Appellant.

Argued February 7, 2018; decided March 22, 2018

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 22, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bonnie G. Wittner, J.; see 42 Misc 3d 1209[A], 2013 NY Slip Op 52261[U] [2013]), which had convicted defendant, upon a jury verdict, of murder in the second degree.

People v Brooks, 134 AD3d 574, affirmed.

HEADNOTES

Crimes — Harmless and Prejudicial Error — Using *Frye* Procedure to Rule on Foundation of Expert Testimony

1. In defendant’s murder prosecution, any error by the trial court in improperly employing the procedure set forth in *Frye v United States* (293 F 1013 [DC Cir 1923]) to rule on the foundation of the defense expert’s testimony was harmless. Under the *Frye* standard, expert testimony is admissible only if a scientific principle or procedure has gained general acceptance in its specified field. The *Frye* inquiry is separate and distinct from the admissibility question applied to all evidence—whether there is a proper foundation—to determine whether the accepted methods were appropriately employed in a particular case. The proper procedure for addressing concerns

about foundation can include an in limine hearing where the trial court determines whether there is too great an analytical gap between the data and the opinion proffered. The question is whether the expert's opinion sufficiently relates to existing data or is connected to existing data only by the ipse dixit of the expert.

Crimes — Evidence — Character Evidence

2. In defendant's murder prosecution, the trial court's admission of character testimony from 11 witnesses was not impermissibly prejudicial and cumulative. The trial court repeatedly instructed the jury that such evidence could be used only for the limited purpose of establishing the nature of the relationship between defendant and the victim, not to show defendant's propensity to engage in illicit conduct. In any event, the testimony about defendant's prior bad acts largely reflected his own admissions to police, and defendant's objection on appeal to the cumulative nature of the testimony was unpreserved.

Crimes — Evidence — Hearsay — Defendant's Threat to Kill Victim

3. The trial court in defendant's murder prosecution erred in admitting testimony about an argument that occurred more than a month before the murder in which defendant threatened to kill the victim. The witness's testimony as to the victim's statement that defendant had previously threatened her constituted double hearsay and was not properly admitted pursuant to any exceptions to the hearsay rule. Even where evidence that the defendant threatened to kill the victim is admissible under a *Molineux* theory, such evidence must still be in admissible form. Nor is there any blanket hearsay exception providing for use of such statements as background in domestic violence prosecutions. Nonetheless, considering the overwhelming evidence against defendant, the error was harmless.

APPEARANCES OF COUNSEL

Blank Rome LLP, New York City (*Susan C. Wolfe*, *Jeffrey C. Hoffman* and *Jerry D. Bernstein* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*David M. Cohn* and *Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Following a jury trial, defendant was convicted of second-degree murder (Penal Law § 125.25 [1]) for killing his girlfriend in a Manhattan hotel room. The victim, partially clothed, was found fully submerged in an overflowing bathtub. Forensic testing showed defendant's DNA on a bathtub fixture. The autopsy revealed signs of strangulation and fluid in the victim's lungs, indicating that she had been trying to breathe while under water. The Chief Medical Examiner ultimately concluded that the cause of death was "compression of [the] neck and drowning," opining that this was "not a close case." Video surveillance footage confirmed that, during the short period of

time between check-in and discovery of the body, only defendant and two hotel employees—one assisting the victim to the room and the other bringing ice to the minibar—had entered and exited the room.

Defendant appealed, contending, among other things, that the trial court erred in granting the People’s motion for a *Frye* hearing and in issuing various evidentiary rulings. The Appellate Division unanimously affirmed defendant’s conviction (*People v Brooks*, 134 AD3d 574 [1st Dept 2015]).

[1] Under the *Frye* standard, expert testimony is admissible only if a scientific “principle or procedure has ‘gained general acceptance’ in its specified field” (*People v Wesley*, 83 NY2d 417, 422 [1994], quoting *Frye v United States*, 293 F 1013, 1014 [DC Cir 1923]). The process is meant to assess “whether the accepted techniques, when properly performed, generate results accepted as reliable within the scientific community generally” (*Wesley*, 83 NY2d at 422). Absent a novel or experimental scientific theory, a *Frye* hearing is generally unwarranted.

“The *Frye* inquiry is separate and distinct from the admissibility question applied to all evidence—whether there is a proper foundation—to determine whether the accepted methods were appropriately employed in a particular case” (*Parker v Mobil Oil Corp.*, 7 NY3d 434, 447 [2006]). The proper procedure for addressing concerns about foundation can include an in limine hearing where the trial court determines whether “‘there is simply too great an analytical gap between the data and the opinion proffered’” (*Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762, 781 [2014], quoting *General Elec. Co. v Joiner*, 522 US 136, 146 [1997]). The question is whether the expert’s opinion sufficiently relates to existing data or “is connected to existing data only by the *ipse dixit* of the expert” (*Joiner*, 522 US at 146).

To the extent that the trial court improperly employed the *Frye* procedure to rule on the foundation of the defense expert’s testimony, any such error was harmless.

[2] We also reject defendant’s challenges to the trial court’s evidentiary rulings. Defendant primarily contends that character testimony from 11 witnesses was impermissibly prejudicial and cumulative. The trial court repeatedly instructed the jury that such evidence could be used only for the limited purpose of establishing the nature of the relationship between defendant and the victim, not to show defendant’s propensity to engage in illicit conduct. In any event, the testimony about

defendant's prior bad acts largely reflected his own admissions to police, and defendant's present objection to the cumulative nature of this testimony is unpreserved.

[3] The trial court erred, however, in admitting testimony about an argument—occurring more than a month before the murder—in which defendant threatened to kill the victim. The witness's testimony as to the victim's statement that defendant had previously threatened her constituted double hearsay and was not properly admitted pursuant to any exceptions to the hearsay rule. The People's contention that the threat was not offered for its truth is belied by the record. "It may be true that evidence that defendant . . . threatened to kill the victim is admissible under a *Molineux* theory, but such evidence must still be in admissible form" (*People v Meadow*, 140 AD3d 1596, 1599-1600 [4th Dept 2016]). Nor is there any blanket hearsay exception providing for use of such statements as "background" in domestic violence prosecutions (*see People v Maher*, 89 NY2d 456, 460-461 [1997]). Considering the overwhelming evidence against defendant, we nonetheless conclude that the error was harmless.

Defendant's remaining contentions are without merit.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order affirmed, in a memorandum.

[96 NE3d 209, 73 NYS3d 113]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL JOHNSON, Appellant.

Argued February 6, 2018; decided March 22, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered May 18, 2016. The Appellate Division affirmed (1) a judgment of the Supreme Court, Queens County (Gregory L. Lasak, J.), which had convicted defendant, upon a jury verdict, of attempted murder in the second degree, robbery in the first degree (two counts), assault in the first degree, criminal possession of a forged instrument in the first degree (three counts), criminal possession of a forged instrument in the second degree (two counts), robbery in the second

degree, and criminal possession of stolen property in the fifth degree; and (2) an amended judgment of that Supreme Court, which had convicted defendant, upon a jury verdict, of unauthorized use of a vehicle in the third degree. The appeals to the Appellate Division brought up for review the denial by that Supreme Court (Joseph A. Grosso, J.), after a hearing, of that branch of defendant's omnibus motion which was to suppress his statements to law enforcement officials.

People v Johnson, 139 AD3d 967, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error — Denial of Suppression Motion

The Appellate Division order affirming two judgments that had convicted defendant of various crimes was affirmed where, on the facts, assuming without deciding that the trial court erroneously denied defendant's motion to suppress, any such error was harmless. Moreover, defendant's other claims of trial error and prosecutorial misconduct were without merit (*see* CPL 240.50).

APPEARANCES OF COUNSEL

Michael Johnson, pro se, and *Appellate Advocates*, New York City (*De Nice Powell* and *Lynn W.L. Fahey* of counsel), for Michael Johnson, appellant.

Richard A. Brown, District Attorney, Kew Gardens (*Nancy Fitzpatrick Talcott*, *Robert J. Masters* and *Joseph N. Ferdenzi* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be affirmed.

Defendant Michael Johnson appeals from the Appellate Division order affirming two judgments of conviction and sentence. On the facts of this case, assuming without deciding that the trial court erroneously denied defendant's motion to suppress, any such error was harmless (*see People v Crimmins*, 36 NY2d 230 [1975]). Defendant's other claims of trial error and prosecutorial misconduct are without merit (*see* CPL 240.50; *People v Almodovar*, 62 NY2d 126, 133 [1984]; *People v Davis*, 58 NY2d 1102, 1104 [1983]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order affirmed, in a memorandum.

In the Matter of ADAM D. SCO FAMILY OF SERVICES et al.,
Respondents; VICTORIA C., Appellant. (Proceeding No. 1.)

In the Matter of ANN M.C. SCO FAMILY OF SERVICES et al.,
Respondents; VICTORIA C., Appellant. (Proceeding No. 2.)

In the Matter of KASHAWN D. SCO FAMILY OF SERVICES et al.,
Respondents; VICTORIA C., Appellant. (Proceeding No. 3.)

Submitted February 13, 2018; decided April 3, 2018

Reported below, 157 AD3d 673.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

RICHARD A. BRUMMEL, Appellant, v BOARD OF TRUSTEES OF THE
VILLAGE OF EAST HILLS, N.Y., et al., Respondents.

Submitted January 22, 2018; decided April 3, 2018

Reported below, 155 AD3d 818.

Motion, insofar as it seeks leave to appeal as against Board of Trustees of the Village of East Hills, N.Y. and Michael R. Kolblenz, dismissed upon the ground that as to those parties the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

COLEBROOKE THEATRICAL LLP, Respondent, v STEPHANE BIBEAU
et al., Appellants, et al., Defendant.

Decided April 3, 2018

Reported below, 155 AD3d 581.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

DANIEL R. WOTMAN & ASSOCIATES, PLLC, Respondent, v JANET
CHANG, Appellant.

Submitted January 16, 2018; decided April 3, 2018

Reported below, 148 AD3d 571.

Motion, insofar as it seeks leave to appeal from the March 2017 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved for leave to appeal to the Court of Appeals from the Appellate Division order from which leave to appeal is currently sought (29 NY3d 1047 [2017]); motion, insofar as it seeks leave to appeal from the October 2017 stipulation, dismissed upon the ground that no appeal lies from the stipulation to discontinue the entire action without prejudice.

MIGUELIS DIAZ, an Infant, by Her Mother and Natural Guardian, SILVINIA BELEN, Respondent, v WYCKOFF HEIGHTS MEDICAL CENTER et al., Defendants, and 297 SCHAEFFER STREET REALTY CORP. et al., Appellants.

Submitted January 29, 2018; decided April 3, 2018

Reported below, 148 AD3d 778.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of FENG LI, a Suspended Attorney, Appellant; GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted February 26, 2018; decided April 3, 2018

Reported below, 149 AD3d 238.

Motion for reargument denied [*see* 30 NY3d 1082 (2018)].

In the Matter of SINCLAIR HABERMAN et al., Respondents, v ROCCO MORELLI et al., Appellants, and ZONING BOARD OF APPEALS OF THE CITY OF LONG BEACH et al., Respondents.

Submitted January 8, 2018; decided April 3, 2018

Reported below, 152 AD3d 685.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JOHANNA B., SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; GRACE B., Appellant. (Proceeding No. 1.)

In the Matter of JOSIAH B. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; GRACE B., Appellant. (Proceeding No. 2.)

Submitted January 29, 2018; decided April 3, 2018

Reported below, 157 AD3d 668.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of the Claim of JAMES R. LINK, Respondent. CANTOR & PECORELLA, INC., Appellant; COMMISSIONER OF LABOR, Respondent.

Submitted January 29, 2018; decided April 3, 2018

Reported below, 153 AD3d 1061.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

THERESA WARREN, Respondent, v AMCHEM PRODUCTS, INC., et al., Defendants, and J-M MANUFACTURING COMPANY, INC., Appellant.

Submitted February 20, 2018; decided April 3, 2018

Reported below, 151 AD3d 550.

Motion for reargument of motion for leave to appeal denied [see 30 NY3d 1055 (2018)].

Judge FEINMAN taking no part.

In the Matter of NEW YORK CITY HOUSING AUTHORITY, SOUTH JAMAICA 11 HOUSES, Respondent, v JONATHAN HEADLEY, Respondent, and PAMELA JACKSON, Appellant.

Submitted February 20, 2018; decided April 3, 2018

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of KEVIN PHILLIP, Appellant, v BARRY McARDLE, Superintendent, Watertown Correctional Facility, Respondent.

Submitted January 16, 2018; decided April 3, 2018

Reported below, 2017 NY Slip Op 93929(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. The Appellate Division order does not resolve petitioner's appeal before that Court.

In the Matter of DENNIS W. QUIRK, Appellant, v Hon. JONATHAN LIPPMAN, Respondent.

Decided April 3, 2018

Reported below, 156 AD3d 516.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge DiFIORE taking no part.

In the Matter of SAVE GANSEVOORT, LLC, et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Submitted March 5, 2018; decided April 3, 2018

Reported below, 158 AD3d 483.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

HEATHER THOMSON SCHINDLER et al., Respondents, v ERIC ROTHFELD et al., Appellants, and TIMES THREE CLOTHIER, LLC, Nominal Defendant. (And Another Action.)

Submitted February 5, 2018; decided April 3, 2018

Reported below, 153 AD3d 436.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of THEODORE SIMPSON, Appellant, v A. RODRIGUEZ, as Acting Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted February 20, 2018; decided April 3, 2018

Reported below, 149 AD3d 1448.

Motion for reargument of motion for leave to appeal denied [*see* 30 NY3d 1057 (2018)].

LAZARO SOTOLONGO, Appellant, v ROBERT L. CRISTOFARO et al., Respondents.

Submitted February 13, 2018; decided April 3, 2018

Reported below, 2017 NY Slip Op 96725(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of TAMEL D. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CURTIZ J., Appellant; TANISHA R.B., Respondent. (Proceeding No. 1.)

In the Matter of TALIAH B. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CURTIZ J., Appellant; TANISHA R.B., Respondent. (Proceeding No. 2.)

In the Matter of TANISHA R.B., Respondent, v CURTIZ J., Appellant, and ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent. (Proceeding No. 3.)

In the Matter of TANISHA R.B., Respondent, v CURTIZ J., Appellant. (Proceeding No. 4.)

Submitted January 29, 2018; decided April 3, 2018

Reported below, 156 AD3d 695.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

[96 NE3d 762, 73 NYS3d 497]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALADDIN SANCHEZ, Also Known as "SHAGS," Respondent.

Decided March 22, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered March 8, 2017. The Appellate Division modified, on the law, a judgment of the Dutchess County Court (Peter M. Forman, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree, assault in the first degree, assault in the second degree and criminal possession of a weapon in the second degree. The modification consisted of vacating the convictions of manslaughter in the first degree, assault in the first degree, and assault in the second degree, and the sentences imposed thereon, and dismissing the count in the indictment charging murder in the second degree, without prejudice to the People to re-present any appropriate charges to another grand jury.

The Appellate Division affirmed the judgment as modified, and ordered a new trial on the counts of the indictment charging defendant with assault in the first degree and assault in the second degree.

People v Sanchez, 148 AD3d 831, reversed.

HEADNOTE

Crimes — Instructions — Justification Defense

In a criminal prosecution, the trial court properly declined to charge the jury on the justification defense. Even assuming that the jury could have rationally found that defendant subjectively believed he had been threatened with the imminent use of deadly physical force, the jury could not have rationally concluded that his reactions were those of a reasonable person acting in self-defense. Further, on the record, there was no reasonable view of the evidence that defendant could not have safely retreated at the time that deadly physical force was used.

APPEARANCES OF COUNSEL

William V. Grady, District Attorney, Poughkeepsie (*Kirsten A. Rappleyea* of counsel), for appellant.

Greenwald Law, P.C., Chester (*David L. Gove* and *David A. Brodsky* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed and the case remitted to the Appellate Division for consideration of the facts (CPL 470.25 [2] [d]; 470.40 [2] [b]) and issues raised but not determined on appeal to that Court. Viewing the evidence in the light most favorable to defendant (*see People v Watts*, 57 NY2d 299, 301 [1982]), the trial court properly declined to charge the jury on the justification defense because, even assuming that the jury could rationally find that defendant subjectively believed he had been threatened with the imminent use of deadly physical force, “the jury could not rationally conclude that his reactions were those of a reasonable [person] acting in self-defense” (*People v Reynoso*, 73 NY2d 816, 818 [1988]). Further, on this record, there was no reasonable view of the evidence that defendant could not safely retreat at the time that deadly physical force was used (*see Penal Law* § 35.15 [2] [a]; *compare Matter of Y.K.*, 87 NY2d 430, 434 [1996]).

WILSON, J. (dissenting). The majority acknowledges that we must view “the record in a light most favorable to the accused” (*People v McManus*, 67 NY2d 541, 549 [1986]; *see People v Watts*, 57 NY2d 299, 301 [1982]). Thus, when a defendant requests a justification charge, as Mr. Sanchez did here, the

trial court must give it “if any reasonable view of the evidence would permit the fact finder to decide that the conduct of the accused was justified” and, “[u]nder such circumstances, refusal to charge that the People must disprove the alleged justification is reversible error” (*McManus*, 67 NY2d at 549). The majority accepts, at least for the purpose of its analysis, that Mr. Sanchez had a reasonable *subjective* belief that he was responding to a threat of deadly force, but concludes that whatever Mr. Sanchez may have believed, no reasonable person—with Mr. Sanchez’s “background and experiences” (*People v Wesley*, 76 NY2d 555, 559 [1990])—could have believed that Mr. Sanchez’s actions were justified as self-defense.

Following is the evidence most favorable to Mr. Sanchez. (True, there is contrary evidence, much of which would likely have caused a trier of fact to reject Mr. Sanchez’s defense had the court given a justification charge, but that weighing of evidence is the function of the jury, not this Court.) Ask whether, were you a reasonable juror accepting the following evidence as true and disregarding all contrary evidence as false, you would nevertheless reject Mr. Sanchez’s justification defense:

- Mr. Sanchez was stabbed in the abdomen in a bar, and was hospitalized for 10 days. The “word on the street” was that the attackers had not “finished the job.”
- Two months after his release from the hospital, Mr. Sanchez and four friends (two men and two women) were at a restaurant in Poughkeepsie. While in the bathroom, three men beat up Mr. Sanchez while the bouncer stood by watching. Mr. Sanchez had a purple eye and a sharp pain in the location of his prior stab wound. Mr. Sanchez feared his stomach wound had been reopened, and was afraid of being stabbed again. The attackers said they would kill him if he ever came back.
- Returning to his friends, Mr. Sanchez asked one of his female friends to go open the car because he wanted to leave “real quick” so that he could get medical help.
- As Mr. Sanchez and his friends were leaving, 10-15 people, including his attackers, followed them outside with threats, saying not to come back and that they would kill them. Mr. Sanchez and his friends testified that they were afraid of

being attacked by the group. One of Mr. Sanchez's male friends, Mr. Martinez-Mendoza, told Mr. Sanchez to go to the car and get another friend's gun. Mr. Sanchez retrieved the gun and walked back to where his two male friends stood.

- Mr. Sanchez then saw one of his bathroom attackers reach into the waist of his pants for "something shiny" that appeared to be a knife. Mr. Sanchez also heard beer bottles being broken for use as weapons. The decedent, one of the threatening group, said something to another of the bathroom attackers, began taking off his belt, and grabbed Mr. Sanchez's other male friend (Mr. Ramirez). At that point, Mr. Martinez-Mendoza took the gun from Mr. Sanchez's hand and shot in the direction of the group, striking and killing the decedent.
- Mr. Martinez-Mendoza, the shooter, told the police he fired the gun because he felt threatened and afraid because a crowd of people had come after him and his friends. At Mr. Sanchez's trial, Mr. Martinez-Mendoza testified that the reason he had the gun and was aiming it at the people outside El Molino was to protect his friends, and that he was fearful for his and his friends' safety.

Mr. Sanchez, of course, had a duty to retreat without the use of deadly force, but only if he "kn[ew] that with complete personal safety, to [him]self and others" he would be able to retreat from the confrontation (Penal Law § 35.15 [2]). However, even if Mr. Sanchez might have been able to leave in safety at some earlier time that night, that is irrelevant; the question is whether safe retreat was available to him when deadly force was employed, which is when the duty to retreat arises (*see Matter of Y.K.*, 87 NY2d 430, 434 [1996]).

If you believe, on the above version of the facts, that no reasonable jury could conclude that Mr. Sanchez's actions were justified, then the majority is correct, and Mr. Sanchez should have been denied the justification charge he requested. But if you believe that you might have done the same as Mr. Sanchez under the circumstances, to protect yourself and your friends, then these facts, along with the many contrary facts, must be submitted to the jury for determination of Mr. Sanchez's claim of justification.

Lurking somewhere beneath the majority's opinion is the thought that you mustn't bring a gun to a knife fight. We

should keep in mind that, although there is no evidence that the group threatening Mr. Sanchez and his friends was armed with guns, courts of this state have held that the threat of deadly force may exist when a group of people attacking an individual is not armed at all (*Matter of Y.K.*, 87 NY2d at 434) or when, in a one-on-one altercation, an unarmed victim “grabs” at a defendant’s gun (*People v Brown*, 160 AD3d 39, 45 [1st Dept 2018]). The use of broken glass and glass bottles may also constitute deadly force (see *People v Mason*, 132 AD3d 777, 777 [2d Dept 2015] [striking victim in the face with a glass bottle considered deadly physical force]; *People v James*, 137 AD3d 1587, 1588-1589 [4th Dept 2016] [defendant used deadly force when she cut victim’s forehead with piece of broken glass; could be considered deadly force when victim struck defendant’s brother in the head with a champagne bottle]; *People v White*, 66 AD3d 585, 586 [1st Dept 2009] [throwing glass bottle, which shattered upon contact with victim’s face, was deadly force]). Courts have also characterized a variety of items as dangerous instruments which, if used as part of a real or threatened attack, might justify the use of deadly force (*People v Carter*, 53 NY2d 113, 116 [1981] [rubber boots]; *People v Cwikla*, 46 NY2d 434, 442 [1979] [handkerchief used as a gag]; *People v Bouldin*, 40 AD2d 1045, 1045 [3d Dept 1972] [spatula]).

In short, Mr. Sanchez adduced sufficient evidence to require the court to instruct the jury on justification. The jury would have been free to reject that defense, but we should not do so on this appeal. Accordingly, I would affirm the order of the Appellate Division.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents in an opinion in which Judge Rivera concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts (CPL 470.25 [2] [d]; 470.40 [2] [b]) and issues raised but not determined on appeal to that Court, in a memorandum.

[96 NE3d 765, 73 NYS3d 500]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK
BOYD, Appellant.

Decided March 27, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 13, 2017. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Efrain L. Alvarado, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the third degree.

People v Boyd, 152 AD3d 53, affirmed.

HEADNOTES**Crimes — Indictment — Noninclusory Concurrent Counts — Dismissal of Less Serious Count**

1. In a prosecution stemming from defendant's alleged unlawful possession of both a BB gun and a firearm, the trial court did not abuse its discretion by dismissing the noninclusory charge of unlawful possession of an air pistol or rifle which related to the BB gun (*see* CPL 300.40 [6] [a]). The jury was free to credit defendant's theory that he possessed the BB gun but not the firearm that was also recovered in his vicinity—which was the subject of separate weapon possession counts. His defense that he never possessed the firearm was not removed from consideration when the trial court dismissed the charge related to the BB gun, nor did defendant argue that the dismissal of that count impaired his constitutional right to present a defense.

Crimes — Evidence — Third-Party Culpability Defense

2. The trial court did not deny defendant a meaningful opportunity to present a complete defense insofar as it did not allow him to submit evidence of the arrest of an individual who inculpated himself and later recanted, inasmuch as defendant was permitted to pursue his chosen third-party culpability defense, and the trial court did not abuse its discretion as a matter of law by refusing to admit facts concerning the other individual's arrest into evidence.

APPEARANCES OF COUNSEL

Marianne Karas, Thornwood, for appellant.

Darcel D. Clark, District Attorney, Bronx (*Emily Anne Aldridge* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

[1] The order of the Appellate Division should be affirmed. Defendant was alleged to have unlawfully possessed both a BB gun and a Taurus firearm, but his conviction of third-degree criminal possession of a weapon involves only the Taurus firearm. The trial court did not abuse its discretion by dismissing the non-inclusory charge of unlawful possession of an air pistol or rifle which related to the BB gun (*see People v Leon*, 7 NY3d 109, 113 [2006]; CPL 300.40 [6] [a]). The jury was free to credit defendant's theory that he possessed the BB gun but not

the Taurus firearm that was also recovered in his vicinity—which was the subject of separate weapon possession counts. Contrary to defendant’s contention, his defense that he never possessed the Taurus firearm was not removed from consideration when the trial court dismissed the charge related to the BB gun, nor did defendant argue in the trial court that the dismissal of the BB gun count impaired his constitutional right to present a defense.

[2] We also reject as without merit defendant’s claim that the trial court denied him a meaningful opportunity to present a complete defense insofar as it did not allow him to submit evidence of the arrest of Steve Ramsanany—an individual who inculpated himself and later recanted—inasmuch as defendant was permitted to pursue his chosen third-party culpability defense, and the trial court did not abuse its discretion as a matter of law by refusing to admit facts concerning Ramsanany’s arrest into evidence (*see People v Frumusa*, 29 NY3d 364, 372 [2017]). To the extent defendant contends that the trial court improperly admitted evidence of Ramsanany’s recantation, that argument was not preserved for our review.

Defendant’s contention that the People shifted the burden of proof during summation is unavailing. In light of the trial court’s immediate curative measure, the People’s remark did not constitute a pervasive pattern of prosecutorial misconduct so as to deprive defendant of a fair trial (*see People v Galloway*, 54 NY2d 396, 399 [1981]). Defendant’s remaining claims of prosecutorial misconduct are unpreserved. Finally, with regard to his claim of ineffective assistance of counsel, defendant has failed to “demonstrate the absence of strategic or other legitimate explanations for counsel’s alleged shortcomings” (*People v Honghirun*, 29 NY3d 284, 289 [2017] [internal quotation marks and citation omitted]).

RIVERA, J. (dissenting). The trial court abused its discretion when it did not submit the unlawful possession of an air pistol count to the jury and submitted instead only the more serious counts relating to the possession of a handgun. This error allowed the jury to consider highly prejudicial testimony completely irrelevant to the counts submitted, including defendant’s admission of guilt to the possession of the air pistol. So doing, the trial court encouraged reverse jury nullification and provoked confusion in the jury’s deliberative process. Notwithstanding this error, the Appellate Division affirmed defendant’s conviction based on a misapplication of our law on lesser included offenses and jury nullification. Contrary to the

views of my colleagues, the Appellate Division's analysis should be rejected and its order reversed.

I.

Defendant was charged with several counts related to the unlawful possession of a 9 millimeter semiautomatic handgun and an air pistol—commonly referred to as a BB gun.¹ At trial, the People's case turned on the testimony of one of the arresting officers, who explained that he was riding with his partner in an unmarked police car at night when he observed defendant holding a gun in each hand. As the car approached defendant, the officer saw him make a throwing motion under a parked van and walk away. The officer testified that while he did not see defendant throw the guns, he heard “two clinks hitting the ground.” The officers exited the car, arrested defendant, and found a handgun and an air pistol under the van. Neither weapon was tested for DNA or fingerprints.

Defendant conceded that he possessed the air pistol but disputed his possession of the handgun. As a defense, he argued that the gun actually belonged to a person named Steve Ramsanany, and that it was him, and not defendant, who had thrown the gun under the van. To support that claim, the defendant hired a retired New York Police Department detective to interview Ramsanany. The detective warned Ramsanany that admitting to possessing the handgun could result in his arrest, but Ramsanany proceeded with the interview anyway. Ramsanany affirmed that, on the night in question, he had been present at a nearby dice game where he got into an altercation, during which another player slapped him. At that point, he left the game and returned with the handgun. When he saw an unmarked police car approach, he threw the handgun under the van. Ramsanany also said that he saw defendant throw a BB gun under the same van. The detective prepared a written statement memorializing Ramsanany's various affirmations, which Ramsanany signed. At trial, defendant introduced testimony from another witness present at the dice game that was consistent with Ramsanany's account. When the police detectives interviewed Ramsanany, he allegedly

1. A BB gun is an air pistol that fires small metal balls called “BBs” (Merriam-Webster Online Dictionary, BB gun [<https://www.merriam-webster.com/dictionary/BB%20gun>] [accessed Mar. 2, 2018]). Although not a firearm, possessing one may still constitute a violation of the Administrative Code of the City of New York, as was charged here (*see* Administrative Code § 10-131 [b]). By contrast, illegal possession of a handgun is the more serious offense of criminal possession of a weapon in violation of the Penal Law (*see* Penal Law § 265.00 *et seq.*).

recanted his statement and claimed that the defendant had pressured him to lie. All this evidence, including, in particular, Ramsanany's statement and alleged recantation, was submitted to the jury, since Ramsanany himself was not available to testify, as he was in federal custody at the time for allegedly attempting to sell an AK-47 to undercover officers.

Even though a central part of the People's case-in-chief was intended to establish defendant's possession of the air pistol, and defendant admitted possession, the People nevertheless moved to dismiss the air pistol count once all the evidence had been presented. The defense objected, stating that the jury should be allowed to consider the charge. The trial court disagreed and granted the People's request. Ultimately, the court submitted several counts related to the criminal possession of the handgun but not the one related to the air pistol.

In a 3-2 decision, the Appellate Division held that this was no mistake. Relying on this Court's opinion in *People v Leon*, the majority observed that a trial judge must "weigh competing possibilities" in deciding which charges in an indictment to submit to a jury (152 AD3d 53, 56 [1st Dept 2017], quoting *People v Leon*, 7 NY3d 109, 114 [2006]). In particular, the judge must determine whether the submission of a less serious count is more likely to help the jury reach a fair verdict, distract it, or give it "an opportunity to split the difference" (*id.*). According to the Appellate Division majority, in this case "[t]he [trial] court providently dismissed the air pistol charge so that the jury could not compromise by resorting to jury nullification and merely find defendant guilty of that less serious charge" (*id.* at 57).

The dissenting Justices, by contrast, maintained that the dismissal "removed defendant's only defense from consideration, namely, that he only possessed the air pistol" (*id.* at 65 [Acosta, P.J., and Gesmer, J., dissenting]). As the dissent cogently argued, far from allowing the jury to reach a compromise verdict, submitting the air pistol count would have enabled the jury to focus on the "straightforward" question at heart of the case, "that is, did defendant possess both [the air pistol and the handgun] or just the air pistol?" (*id.* at 66).

On the facts of this case, the trial court erred because the evidence supported the charge and dismissal of the air pistol count put the defendant at a distinct and impermissible disadvantage, as he had already admitted possession of the air pistol. Contrary to the Appellate Division majority's conclusion, the defendant was not making a ploy for jury nullification.

Indeed, on the facts of this case, leaving the jury to render a verdict where defendant had confessed guilt to a crime that was no longer before the jury encouraged reverse nullification, distracted the jury from its fact-finding duty of determining defendant's guilt of unlawful possession of the handgun, and generated confusion. This was an abuse of discretion. Defendant's conviction should be reversed and a new trial ordered (*see People v Extale*, 18 NY3d 690, 696 [2012]).

II.

A.

Under both the New York and the Federal Constitution, defendants have a fundamental right to present a complete defense. As the United States Supreme Court held in *Chambers v Mississippi*, “[t]he right of an accused in a criminal trial to due process is, in essence, the right to a fair opportunity to defend against the State’s accusations” (410 US 284, 294 [1973]). Although a trial court has wide latitude in conducting proceedings, a judge may not take action—even discretionary action—that abridges this basic criminal right (*see e.g. People v Carroll*, 95 NY2d 375, 385 [2000] [observing that a trial court’s discretionary decisions—here, on the admission of evidence—may not infringe a defendant’s fundamental right to present a complete defense]).

It is now well established that the power to dismiss a count in an indictment lies within the discretion of the trial court. That was not always the case. At early common law, the prosecutor could unilaterally dismiss any count in an indictment. Over a hundred years ago, however, the New York Legislature abolished this old right of nolle prosequi and transferred the power to the trial judge (*see Code Crim Pro* §§ 671, 672). Now, “[w]hether . . . a count should be dismissed at the prosecutor’s request is an issue to be decided by the court in its discretion” (*Extale*, 18 NY3d at 692).

Such discretion is not boundless. In particular, a judge’s power to dismiss counts of an indictment is limited by the Criminal Procedure Law, which specifically protects the defendant’s right to request the submission of lesser included offenses where those offenses might be supported by a reasonable view of the evidence (*see CPL 300.50; see also People v Mussenden*, 308 NY 558, 561-562 [1955] [observing that “(i)t has been repeatedly written that if, upon any view of the facts,

a defendant could properly be found guilty of a lesser degree or an included crime, the trial judge must submit such lower offense” to the jury and collecting New York cases]).

Although the Criminal Procedure Law does not mandate submission of a non-inclusory lesser count, as this Court explained in *Leon*, a court’s refusal to submit the count is subject to review for abuse of discretion. However, the Appellate Division majority’s reliance on *Leon* here to uphold the trial court’s dismissal of the air pistol count as a non-inclusory lesser offense is misplaced. *Leon* acknowledges the uncontroverted general rule that a judge may not exceed the proper bounds of the court’s discretionary authority when denying a request to charge. In *Leon* itself, the Court upheld the dismissal of a non-inclusive lesser offense where submission of the offense to the jury would have distracted it from its primary fact-finding function.

The facts of *Leon* are uncomplicated. The defendant, a drug dealer, shot and killed a rival drug dealer in the course of an argument between the rival and the defendant’s friend on a street near the defendant’s home. As relevant here, the indictment included two counts of criminal possession of a weapon, both springing from the same factual nexus, namely the defendant’s use of a loaded gun to shoot the victim on a city street. The defendant was indicted, among other crimes, on one charge of criminal possession in the second degree for possessing a loaded firearm “with intent to use the same unlawfully against another” (former Penal Law § 265.03 [2]), and one charge of criminal possession in the third degree for possessing the loaded firearm outside of his home or place of business (*see* former Penal Law § 265.02 [4]). The judge denied defendant’s request that both charges be submitted to the jury, submitting only the second-degree count, observing that there was no “reasonable view of the evidence” according to which “the defendant would be guilty of th[e third-degree] charge” but not the second-degree one (*Leon*, 7 NY3d at 112). This Court upheld the trial court, holding that the judge did not abuse his discretion in declining to charge the jury on the non-inclusory lesser count.

As a technical legal matter, the two offenses in *Leon* were theoretically non-inclusory—that is, it was possible to commit one without committing the other. The trial court thus had discretion to forgo submission of the less serious charge. Under the specific facts of the case, however, the offenses in *Leon*

were inclusory in fact, if not in law. In the trial court's judgment, the defendant either had the gun outdoors with the intent to use it unlawfully, in which case he was guilty of criminal possession in the second degree, or he did not, in which case he was not. The third-degree charge effectively functioned as a lesser included offense of the second-degree count.² *Leon*, then, is best understood as the result of the interplay of the unique facts of that case with the general principle that a lesser included offense must be submitted to the jury on a defendant's request unless the charge cannot be supported under any reasonable view of the evidence. As the Court explained, the trial court could conclude that

"[i]t was theoretically possible, on the evidence here, for the jury to find defendant not guilty of the second-degree crime . . . and guilty only of third-degree possession. But the trial court could well have thought that the possibility defendant had no unlawful intention was farfetched [because] [h]e was . . . a drug dealer bringing his gun to an argument with a person in the same line of work" (*id.* at 114).

Leon thus stands for the proposition that a trial court has discretion not to submit a non-inclusory less serious count where that count could not be supported by a reasonable view of the evidence, and so the charge's inclusion would only "interfere with, rather than advance, the jury's performance of its duty" (*id.*). *Leon* does not mandate the outcome advocated by the People here.

B.

Our law on jury nullification does not support the conclusion of the Appellate Division majority here either. Jury nullification scenarios arise when a jury has a choice to limit its finding of guilt to a lesser offense notwithstanding that the evidence supports a verdict of guilt on a more serious count. While the "jury's proper function or duty . . . consists solely of applying the legal definitions of crime, as laid down by the trial court, to the evidence and of convicting of the crime charged, if that is established beyond a reasonable doubt" (*Mussenden*,

2. The trial court may very well have seen the issue this way as, in assessing defendant's request, it used words common to the test for submission of a lesser included offense, "discuss[ing] whether there was a 'reasonable view of the evidence' that would support the third-degree possession count" (*Leon*, 7 NY3d at 114 [emphasis added]).

308 NY at 562), it has long been recognized that jurors may feel compelled to render a verdict for the People solely on a lesser count. The Court has explained that the jury's "mercy-dispensing power is a thing apart from the true duty imposed upon a jury; . . . it is, rather, an inevitable consequence of the jury system" (*id.*).

"As is manifest, merciful or weak jurors may disregard even overwhelming proof of culpability and acquit entirely or convict of a lower crime than the evidence reflects. But that, it has been correctly observed, is 'their responsibility and not the court's.' . . . There is probably no way to prevent or guard against this, but certainly a court should avoid doing anything, such as submitting lower crimes in an inappropriate case, that would constitute an invitation to the jury to foreswear its duty and return a compromise or otherwise unwarranted verdict. Or, to express the matter in somewhat different terms, the jury's power to dispense mercy, by favoring the defendant despite the evidence, should not be allowed so to dominate the trial proceedings as to impede or interfere with the jury's primary fact-finding function" (*id.* at 563, citing *People v Randazzo*, 127 App Div 824, 825 [4th Dept 1908]).

This understanding of the realities of the jury's deliberative process is reflected in our law. The mandatory submission of lesser included offenses "if there is a reasonable view of the evidence which would support a finding that the defendant committed such lesser offense but did not commit the greater" (CPL 300.50 [1]) provides the jury an opportunity to find a defendant guilty of the lesser (and not the more serious) crime, but only under appropriate circumstances. As the Court recognized in discussing the predecessor to CPL 300.50, Code of Criminal Procedure §§ 444 and 445,

"although originally 'intended merely to prevent the prosecution from failing where some element of the crime charged was not made out,' the [lesser included offense] doctrine . . . redounds to the benefit of defendants as well, since its effect actually is to empower the jury 'to extend mercy to an accused by finding a lesser degree of crime than is established by the evidence'" (*Mussenden*, 308 NY at 562 [citations omitted]; see also *People v Boettcher*, 69 NY2d 174, 182 n 3 [1987]).

III.

Defendant's sole defense was that he possessed and discarded the air pistol and not the handgun. To support this defense, he submitted evidence that the gun belonged to Ramsanany and not to him. The non-inclusory less serious air pistol count was supported by a reasonable view of the evidence. Indeed, the prosecution proffered substantial witness testimony to prove defendant's guilt of this charge, and defendant himself admitted possession. Under these circumstances, the trial court denied defendant "a fair opportunity to defend against the State's accusations" (*Chambers*, 410 US at 294) by only submitting the handgun counts to the jury after the People and defendant presented evidence that he possessed the air pistol.

Moreover, the defense presented did not require that a jury exercise mercy in defendant's favor, but rather that the jury find on the evidence submitted that the People failed to establish beyond a reasonable doubt that he possessed and discarded the handgun. The trial court, however, also exceeded the bounds of its discretion when it created an opportunity for *reverse* nullification. Defendant admitted his guilt to possession of an air pistol when he was facing a count for that act. The court allowed the prosecution to introduce testimony and evidence prejudicial to defendant that was relevant to that air pistol count alone. When it declined to submit that charge to the jury, after defendant's admission and the entry of the prosecution's evidence, the court put the defendant at an intolerable disadvantage. The jury, knowing that defendant had admitted guilt on the air pistol, could have been affected in its ultimate verdict to find him guilty of possession of a weapon, not as an exercise of mercy, but punishment, acting as the conscience of the community (see Jack B. Weinstein, *Considering Jury "Nullification": When May and Should a Jury Reject the Law to Do Justice*, 30 Am Crim L Rev 239, 244-245 [1993] [observing that juries act "as the conscience of the democratic community" and that they "are charged not with the task of blindly and mechanically applying the law, but of doing justice in light of the law, the evidence presented at trial, and their own knowledge of society and the world" (internal quotation marks and citations omitted)]). For just as "we have recognized, as a practical matter, that the availability of a lesser included offense may affect a jury's deliberations" (*Boettcher*, 69 NY2d at 180), denial of a less serious non-inclusive offense to which defendant has admitted guilt may also affect a jury's delibera-

tions. After all, the jury was fully aware of defendant's admitted guilt to an offense for which they could not find him guilty, since the court only charged the handgun count. To hold him accountable, the jury could have believed that the only option it had was to convict him on the handgun charges.

The trial court thus abused its discretion when it refused to submit the charge on the offense to which defendant admitted guilt on the incorrect basis that defendant sought nullification or a compromise verdict in his favor. While "a court should avoid doing anything, such as submitting lower crimes in an inappropriate case, that would constitute an invitation to the jury to foreswear its duty and return a compromise or otherwise unwarranted verdict" (*Mussenden*, 308 NY at 563), a court must also avoid creating circumstances that foster a jury verdict favorable to the People because a defendant admits guilt of a dismissed count.

The Appellate Division majority's conclusion that submission of two unrelated charges "could only confuse the jurors or permit jury nullification during jury deliberations" is unfounded (152 AD3d at 57). What confusion could possibly come from submission of an offense on which the People had entered extensive evidence and defendant had admitted guilt? As the dissent commented, "this was not a complicated case" (152 AD3d at 66 [Acosta, P.J., and Gesmer, J., dissenting]). Asking the jury to consider defendant's guilt on the air pistol count would not have kept the jury from exercising its fact-finding duty.

Ironically, it appears that by permitting evidence on the air pistol but not charging on this count, the trial court affirmatively created confusion. As the dissent noted,

"notwithstanding the court's charge that all the counts referred to the [handgun], the jurors nonetheless asked for a 'read-back of [the detective's] testimony about his conversations with . . . [Ram-sanany].' They followed shortly after that with a request to examine both pistols. And when the jurors requested a recharge on the submitted counts, the court denied the defense's request to charge the jury that the counts only referred to the [handgun]" (*id.*).

To reach a verdict on the handgun count, the jury obviously considered defendant's version of events and whether someone else possessed and disposed of the gun. In other words, the

jury had to deconstruct the evidence and the People's and defendant's counter-narratives to decide whether it believed defendant's story. The court deprived the jury of an opportunity, however, to clearly express its conclusions.

IV.

While a trial court need not grant a defendant's request to submit a charge on a non-inclusive less serious offense in all cases, it is an abuse of discretion to dismiss the lesser count where, as here, the People present evidence of defendant's guilt of the less serious offense as a central part of its case-in-chief, and defendant admits guilt to the lesser crime in sole defense against the greater offense. Not presenting the count here was the equivalent of denying the defendant the opportunity to fully present his defense, denying him a fair trial, and encouraging reverse nullification. I dissent.

Chief Judge DiFIORE and Judges STEIN, FAHEY, GARCIA and FEINMAN concur; Judge RIVERA dissents in an opinion in which Judge WILSON concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[96 NE3d 772, 73 NYS3d 508]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL PEREZ, Appellant.

Argued February 13, 2018; decided March 27, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 4, 2016. The Appellate Division order, insofar as appealed from, affirmed a judgment of the Supreme Court, Bronx County (Megan Tallmer, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and violation of probation.

People v Perez, 142 AD3d 410, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Frisk

Whether the police conduct during an encounter with defendant in a public housing building in a high crime area conformed to *People v De Bour* (40

NY2d 210 [1976]) presented a mixed question of law and fact and, accordingly, review by the Court of Appeals was limited to whether there was record evidence supporting the lower courts' determinations that the officers were authorized to search defendant for a weapon. Given that police-citizen encounters are dynamic situations during which the degree of belief possessed at the point of inception may blossom by virtue of responses or other matters which authorize and indeed require additional action as the scenario unfolds, there was record support for the determination that the circumstances as testified to by the arresting officer provided the requisite level of support to satisfy the applicable level of intrusion.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (Steven J. Miraglia of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (Shera Knight, Nancy D. Killian and Gina Mignola of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed.

Police were conducting a vertical patrol of a New York City Housing Authority building in a high crime area and interviewing tenants in search of a robbery suspect in an investigation unrelated to this case. Defendant got off the elevator, observed the police officers—who were approximately eight feet away with shields displayed—and immediately retreated into the elevator. Defendant ignored an officer's request that he hold the door and instead "kept pressing the button" and the elevator doors closed. In light of this behavior, as well as the building's history of narcotics and trespass activity, the police followed defendant to determine whether he lived in the building. Rather than respond to the officer's questions, defendant turned away from the police to face the wall, held his head down with the hood of his sweatshirt over his head, and kept his hands hidden inside his sweatshirt. The officer immediately noticed a large bulge in defendant's right arm, which defendant held stiffly and straight down from his body in an unnatural position. The officer testified that defendant's behavior in conjunction with his refusal to respond to the officer's repeated requests for defendant to indicate whether he had any weapons, and to show his hands, led him to feel compelled for his safety to confirm whether defendant had a weapon by conducting a limited search of defendant's wrist area. When the officer touched the defendant's wrist, he felt a metal object,

lifted the sleeve of the defendant's shirt, saw the point of a blade, and ordered him to "drop it." Defendant did not comply and officers had to pull the weapon—a two-foot-long machete—from defendant's shirt. Minutes later, the officer learned of a recent robbery in the area involving a machete-wielding suspect wearing clothing matching that worn by defendant. Defendant was charged and convicted in connection with that robbery.

The trial court, after hearing a police officer's testimony regarding the encounter, applied our framework for evaluating the propriety of police-initiated encounters with private citizens (see *People v De Bour*, 40 NY2d 210 [1976]), and found that "all of the police actions were justified from their inception." A majority of the Appellate Division panel affirmed, finding that "[based] on all of the attendant circumstances, including the manner in which defendant was holding his arm and his refusal to state whether he was armed or to show his hands when asked," the officers were authorized to search defendant for a weapon (*People v Perez*, 142 AD3d 410, 415-416 [1st Dept 2016]). The issue on appeal to this Court, whether the police conduct conformed to *De Bour*, presents a mixed question of law and fact (see *People v Barksdale*, 26 NY3d 139, 143 [2015]). Accordingly, "our review is limited to whether there is evidence in the record supporting the lower courts' determinations" (*id.* [internal quotation marks and citation omitted]).

Keeping in mind that "police-citizen encounters are dynamic situations during which the degree of belief possessed at the point of inception may blossom by virtue of responses or other matters which authorize and indeed require additional action as the scenario unfolds" (*De Bour*, 40 NY2d at 225), there is support in the record for the determination that the circumstances as testified to by the arresting officer, which Supreme Court found credible, provided the requisite level of support to satisfy the applicable level of intrusion.

To the extent that the lower court may have erred in admitting the statement defendant made at the precinct prior to being given any *Miranda* warnings, any error was harmless (see *People v Crimmins*, 36 NY2d 230, 237 [1975]).

RIVERA, J. (dissenting). On this appeal, we must determine whether further police action during an encounter with an individual in a residential building is justified where the individual fails to respond to police questions and merely stands mo-

tionless and silent. The majority's conclusion that the record supports defendant's forcible detention and frisk is inconsistent with our established law. Absent reasonable suspicion that a person has committed, is committing, or is about to commit a crime, the police may not stop and detain them (*see People v Moore*, 6 NY3d 496 [2006]; *People v De Bour*, 40 NY2d 210 [1976]). Reasonable suspicion cannot be based on a person's failure to answer police questions absent other indicia of criminal activity. Nor may forcible police action be based on a person's efforts to avoid confrontation, which defendant clearly sought to do here by turning around and facing the wall.

The case before us is particularly startling because the police approached defendant to ascertain whether he lived in the building, which he in fact did. He chose not to tell that to the police when asked—a choice the law protects. In my view, nothing about defendant's encounter with the police supports the erosion of his “right to be let alone” (*see People v Howard*, 50 NY2d 583, 590 [1980]). Accordingly, I would reverse and grant defendant's motion to suppress.

I.

The People's sole witness at the suppression hearing, Officer Rodriguez, described how he and three other police officers encountered defendant in a New York City Housing Authority (NYCHA) residential apartment building¹ during their “vertical patrol”: a procedure by which the police “check the whole building from the roof top to the first floor to see if there's any loitering—basically any violations.” The officers first spotted defendant, wearing a T-shirt over a hoodie, riding in an elevator that had just stopped on the seventh floor. After the other passengers exited the elevator, defendant took a step out, then, according to Officer Rodriguez, stepped back inside when the officer looked at him. The police were dressed in plainclothes, with their badges exposed. Officer Rodriguez called out to defendant, “Can you hold the door, police, hold the door”? Officer Rodriguez observed defendant continuing to press a button and the elevator doors closed. He explained that the officers then

1. NYCHA is a state agency that administers public housing and the Federal Section 8 rent subsidy program. About 400,000 low-to-moderate-income New Yorkers currently reside in its buildings, and about 235,000 New Yorkers receive Section 8 subsidies (*see About NYCHA*, NYC Housing Authority, <http://www1.nyc.gov/site/nycha/about/about-nycha.page> [accessed Mar. 6, 2018], cached at <http://www.nycourts.gov/reporter/webdocs/NYCHAAbout.pdf>).

decided to pursue defendant “because he wanted to come out, had the hoodie up and there’s a lot of stuff going on, so I just wanted to make sure he lived in the building because usually there’s a lot of narcotic traffic in the buildings. So just, you know, to verify that he was supposed to be there.” Officer Rodriguez did not explain what he meant by “a lot of stuff going on” or why the officers assumed defendant might not be a tenant. On cross-examination, the officer confirmed that the police had no information that defendant was involved in criminal activity or was a suspect in any police investigation occurring within the NYCHA building.

The officers followed the elevator, climbing to the eighth and then ninth floor, where they saw defendant in the hallway. During direct examination by the Assistant District Attorney, Officer Rodriguez described the interactions that eventually led to defendant’s arrest:

“[ADA:] Now, when you got up to the ninth floor, what did you see?

“[Officer Rodriguez:] Well, I saw him, he was in the hallway. I identified myself again. I asked him, ‘Do you live in the building?’ He didn’t say anything. He turned and faced the wall. He had his head down with his hoodie. I asked him, ‘Do you live in the building?’ He wouldn’t say anything. Then I noticed there was a bulge in his right arm. I asked him, ‘Do you have any weapons?’ He didn’t say anything again.

“Once I saw the bulge I grabbed his wrist area and I felt the machete. I pulled up his sleeve, you know, just to see the tip of the machete, and definitely I was like, ‘drop it, drop it.’ He wouldn’t drop it.

“[ADA:] Let me stop you right there. Just before you grabbed the bulge, did you say anything else to him?

“[Officer Rodriguez:] I asked him, does he live in the building. He didn’t say anything. And then I asked him, does he have any weapons. This is simultaneously as I’m looking at the bulge.

“[ADA:] Let me ask you: When you—after you asked him did he have any weapons, were you able to see his hands?

“[Officer Rodriguez:] No, sir.

“[ADA:] Did you ask him anything with respect to that?

“[Officer Rodriguez:] Before that, before I touched him I said, ‘Let me see your hands,’ and he did not show me his hands.

“[ADA:] Where were his hands?

“[Officer Rodriguez:] They were inside his sleeve.

“[ADA:] Now, at what point when you got upstairs did you notice the bulge, if at all?

“[Officer Rodriguez:] When I approached him, identified myself. I usually like looking at people. And I noticed—I like to talk to people and have them thinking something else, because I saw the bulge, I knew there was something there because I asked him, ‘Do you have any weapons?’ And he refused to tell me anything. Plus he didn’t show me his hands after I asked him to show me his hands.

“[ADA:] Now, how was he holding—first of all—beg your pardon—which arm, left or right, did you see the bulge in?

“[Officer Rodriguez:] Right arm.

“[ADA:] And how was he holding his right arm?

“[Officer Rodriguez:] It was stiff and I couldn’t see his hand.

“[ADA:] When you say ‘stiff,’ do you mean like straight out?

“[Officer Rodriguez:] Straight out.

“THE COURT[:] It wasn’t like normally the way you stand with the arm a little bent?

“Are you saying his arms were at an angle to his body?

“[Officer Rodriguez:] No, straight down.”

On cross-examination Officer Rodriguez further explained why he grabbed defendant:

“[Officer Rodriguez:] . . . After that I asked him,

let me see your hands, because they were covered. I asked him several times, he didn't do it. At that point I decided, let me feel his arm, his wrist area. That's when I felt the blade, metal object.

"[Defense Counsel:] You did that because it was so visible even underneath the clothing?

"[Officer Rodriguez:] I did it because he didn't want to show me his hands.

"[Defense Counsel:] Is it your testimony that despite the fact that he wasn't showing you his hands, you nonetheless saw a bulge in his arm?

"[Officer Rodriguez:] Yes, plus he didn't—it added on. Once he didn't show me his hands, then I had to see what was there, sir, for my safety.

"[Defense Counsel:] And is it then that you essentially conducted a body frisk of him?

"[Officer Rodriguez:] No, I just went to that area, felt it, pulled his sleeve back—I knew it was an object, I knew it was metal. Pulled it back and that's when I saw the tip.

"[Defense Counsel:] Because the sleeve on one arm did not resemble the other arm?

"[Officer Rodriguez:] Thickness."

Officer Rodriguez immediately placed defendant in custody. The officer soon discovered that defendant lived in the building with his mother, on that same floor, approximately three doors away from where he was arrested.

Defendant moved to suppress the fruits of Officer Rodriguez's search, namely the weapon and some money, on the grounds that the officer improperly stopped and grabbed him in the hallway. The court denied the motion. Defendant was subsequently convicted of robbery in the first degree and sentenced as a second felony offender to a term of 15 years.

The Appellate Division affirmed the conviction and sentence in a 3-2 decision, and, as relevant to this appeal, concluded that the police had a credible reason to follow defendant and that the police intrusion was justified (*People v Perez*, 142 AD3d 410, 416 [1st Dept 2016]). The dissent argued that "from the inception of his encounter with the police, defendant's conduct was consistent with his constitutional right to avoid contact

with the police” and the “detention and frisk of defendant by grabbing his wrists, pulling up his sleeves, and removing a weapon from his body was not justified” (*id.* at 417-418 [Gische and Manzanet-Daniels, JJ., dissenting]). One of the dissenting Justices granted defendant leave to appeal (2016 NY Slip Op 92762[U] [1st Dept 2016]).²

II.

As a threshold matter, contrary to the majority’s conclusion, this appeal does not present a mixed question of law and fact, as we are not called upon to resolve matters in which “facts are disputed, where credibility is at issue or where reasonable minds may differ as to the inference to be drawn from the established facts” (*see People v McRay*, 51 NY2d 594, 601 [1980] [citation omitted]). Instead, “a question of law is presented for review” as to whether the evidence the People presented amounts to the “minimum showing necessary” to warrant the law enforcement action that occurred (*id.*). As we have recognized in the past, articulating the law and ensuring that the challenged police intrusion is justified is within our constitutionally-derived power (*see* NY Const art VI; *People v Spencer*, 84 NY2d 749 [1995]; *People v May*, 81 NY2d 725 [1992]; *see also People v Hicks*, 68 NY2d 234, 238 [1986] [“Defendant’s assertion . . . that the only basis for the stop was that the men in the car were black in a white neighborhood presents an issue of sufficiency and thus raises a question of law”]; *People v Bigelow*, 66 NY2d 417, 420-421 [1985] [(w)hen the issue is the minimum showing necessary to establish probable cause, however, a question of law is presented for our review”]; Arthur Karger, Powers of the New York Court of Appeals § 21:6 at 754-762 [3d ed rev 2005]).

We must be especially careful not to minimize our role in setting forth the proper legal standards in cases challenging the propriety of police encounters with the public, as “[w]e [have] singled out the area of crime prevention for special mention, noting that ‘[s]ince this function is highly susceptible to subconstitutional abuses it will be subject to the greatest scrutiny’ ” (*People v Hollman*, 79 NY2d 181, 189 [1992], quoting *De Bour*, 40 NY2d at 220). It is precisely because police interactions with the public are dynamic situations with the

2. Defendant’s brief to our Court limits his appeal to the suppression issues. I address only those matters concerning the propriety of defendant’s forcible detention and frisk.

potential for misunderstanding between officer and individual, often leading to the escalation of tensions and intrusive law enforcement tactics, that judicial review is essential to rein in abuses. As the Court has previously recognized, judicial attention to the ways in which police action may exceed recognized bounds of authority both protects individuals and guides future conduct (*Hollman*, 79 NY2d at 189-193 [clarifying the requirements laid out in *De Bour*]).

III.

Police-initiated encounters with the public are evaluated under the framework established in *De Bour*, which creates a “gradation of permissible police authority,” with each step defining the categorical boundary for progressively heightened police intrusions (*De Bour*, 40 NY2d at 223; *see also Moore*, 6 NY3d at 498-499). At the first level, a “minimal intrusion . . . to request information is permissible when there is some objective credible reason . . . not necessarily indicative of criminality” (*De Bour*, 40 NY2d at 223). At the second level, “a somewhat greater intrusion . . . to the extent necessary to gain explanatory information, but short of a forcible seizure,” is permitted on the “founded suspicion that criminal activity is afoot” (*id.*). At the third level, a forcible stop and detention is justified in those cases where the officer has “a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor”; “[a] corollary of the statutory right to temporarily detain for questioning is the authority to frisk if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed” (*id.* [citations omitted]). At the fourth and highest level of police interference with a person’s liberty, a person may be placed under arrest if the officer has probable cause to believe the individual “has committed a crime, or offense in [the officer’s] presence” (*id.* [citations omitted]).³

3. Defendant does not ask this Court to reconsider the continued vitality of *De Bour*’s framework for measuring the constitutionality of police actions, but argues that the officers’ conduct here did not comport with *De Bour* and its progeny. There has been recent interest in whether the approach *De Bour* sanctions should be reevaluated by the legislature or the courts. At a New York City Bar Association event marking *De Bour*’s four-decade anniversary, former Chief Judge Sol Wachtler, *De Bour*’s author, was quoted as stating, “that’s too long for a precedent of this sort, when you consider the change in communities, the change in morality, [and] the change in our sense of justice” (Andrew Denney, *After 40 Years, ‘De Bour’ Author Sees Need for a Fresh*

(n. cont’d)

Defendant claims that when Officer Rodriguez saw him on the ninth floor, the officer did not have an objective, credible reason to approach and ask if defendant lived in the building. We need not decide the propriety of the initial inquiry, however, because, as discussed by the Appellate Division dissent, there is no legal support for the defendant's subsequent detention and frisk. Regardless of whether Officer Rodriguez had "an objective, credible reason" to follow defendant simply because defendant pushed the button after the officer asked him to keep the elevator door open, when the officer approached defendant on the ninth floor, he had no information that defendant was involved in criminal activity, and defendant did nothing to provide reasonable suspicion that he had or was about to commit a crime. Thus, there was no justification for the officer's use of physical force—in other words, there was no support for a level three intrusion.

Where, as here, police have no advance information about any criminality ascribed to an individual, and that person stands motionless and silent when approached, the police may not stop and detain, nor grab and place the person under ar-

Look, NYLJ, May 23, 2016). Tellingly, many have critiqued *De Bour* as encouraging abusive police practices (see e.g. Emily J. Sack, *Police Approaches and Inquiries on the Streets of New York: The Aftermath of People v. De Bour*, 66 NYU L Rev 512, 520, 548-553 [1991] [observing that "the courts routinely conflate the *De Bour* standards and use inappropriately low levels of suspicion to justify police intrusions," and that "the multitiered structure of the *De Bour* model allows inadequately justified low-level intrusions to escalate quickly into inappropriate forcible stops and arrests"], cited in *Ligon v City of New York*, 925 F Supp 2d 478, 533 n 398 [SD NY 2013] [further noting, "(t)he NYPD's training materials may illustrate the risk created by the multi-level doctrine of *De Bour*. The mere existence of *De Bour* Level 2, and the inevitable difficulty of clearly distinguishing an encounter on the more intrusive end of Level 2 from an encounter on the less intrusive end of Level 3, creates problems of administrability. In practice, the possibility of classifying a stop as Level 2 or even Level 1 may lead police to perform a large number of stops—in the ordinary sense of the word, but inevitably often in the *Terry* sense as well—without the minimal foundation in reasonable suspicion required by the U.S. Constitution"]; Dasha Kabakova, *The Lack of Accountability for the New York Police Department's Investigative Stops*, 10 Cardozo Pub L Pol'y & Ethics J 539, 562-563 [2012] ["in precincts in which blacks are less than 10% of the population, 'blacks remained over two times (2.17) more likely to be "stopped" on suspicion of committing a violent crime than whites . . . (and) these differences are evident after controlling for race- and crime- specific arrest rates (within each precinct).' The statistic was the same for stops under suspicion of weapons crimes. In contrast, blacks were half as likely as whites to be stopped under suspicion of property crimes in all precincts" (citation omitted)]). Defendant's case similarly falls in the *De Bour* borderlands, straddling the line between levels two and three, and highlights some of our framework's problems.

rest, even if his shirtsleeve has a nondescript bulge. To illustrate the point, if defendant had been standing on a public street—in the heart of a “high crime area”—wearing a hoodie, with his arms pointed straight down, his hands covered by his sweater cuffs, and with one arm of his sleeve appearing “thicker” than the other as in an unshaped bulge, the police would have had no basis to approach and demand he answer questions. If there were no response from defendant in that hypothetical situation, they would also have had no right to grab his wrist and push up his sleeve. Such a level three intrusion is no less prohibited when an individual is in a residential building if the officers have no basis upon which to suspect that the person is involved in criminal activity.

Nevertheless, the People and the majority of this Court take the position that the circumstances of the encounter support a level three forcible intrusion. What are those circumstances? That the building was known for crime? An officer may not ascribe a suspicious nature to an individual simply because the person is observed in a high crime area (*see People v McIntosh*, 96 NY2d 521, 526-527 [2001] [“a discrete area of a city identified as a high crime area has not, by itself, been sufficient justification for informational requests”]). As the Court has previously observed,

“many areas of New York City, at one time or another, have probably been described by the police as ‘high crime neighborhoods’ or ‘narcotics-prone locations’ . . .

“If these circumstances could combine with flight to justify pursuit, then in essence the right to inquire would be tantamount to the right to seize, and there would, in fact, be no right ‘to be let alone’ ” (*People v Holmes*, 81 NY2d 1056, 1058 [1993]).

Is it that defendant did not respond to the officer’s questions about where he lived or whether he was carrying a weapon? That cannot be enough either, because “while the police had the right to make the inquiry, defendant had a constitutional right not to respond” (*see Howard*, 50 NY2d at 590 [no probable cause existed where individual walked quickly away from police, ignored their requests to talk, and then ran away, as he had “the right to be let alone” (citation omitted)]). Furthermore, if, as this Court has previously held, walking away from an officer and refusing to respond “cannot serve to create a reasonable suspicion of criminality,” neither can staying put and

remaining silent (*see e.g. Moore*, 6 NY3d 496 [no reasonable suspicion existed where individual walked away from police, continuing after they yelled at him not to move]; *Holmes*, 81 NY2d at 1057-1058 [no reasonable suspicion existed where individual walked away as patrol car approached and then ran as officers exited the car, since flight alone is “insufficient to justify pursuit because an individual has a right ‘to be let alone’ and refuse to respond to police inquiry”]; *People v May*, 81 NY2d 725, 728 [1992] [individual moved car slowly away as police approached, which “could not serve to create a reasonable suspicion of criminality given defendant’s right . . . to refuse to respond to police inquiry” (citation omitted)]). This case illustrates the imperative for judicial protection of the right to be let alone. As a resident of the building, how else could defendant exercise this right and not escalate the police encounter, other than to remain silent (*see People v Barksdale*, 26 NY3d 139, 150 [2015, Rivera, J., dissenting] [“what happens if the person approached refuses to answer, and remains silent, or says, ‘I do not have to talk to you.’ Or, what if the individual simply walks away? Given that an individual in a police-initiated encounter may seek to exercise that person’s ‘right to be let alone,’ and this Court’s previous statements that an individual need not talk to an officer and may walk away from the police in a noncustodial encounter, the potential for escalation seems all too likely” (citations omitted)]).

Upon what other circumstances could the People and the majority be relying? Is it that the officer observed defendant’s arm was stiff and that his sleeve had a nondescript bulge? There is nothing suspicious to be inferred from a “stiff,” “straight down” arm, as the testifying officer described it, nor is it “unnatural,” as the majority states (majority mem at 965). Likewise, a nondescript bulge “is hardly indicative of criminality” (*Holmes*, 81 NY2d at 1058). This Court has qualified the perennial bulge as a factor supporting police action only where the bulge has the shape or outline of a weapon, or viewed in an area of the body where weapons are typically worn (*compare De Bour*, 40 NY2d at 221, *with Holmes*, 81 NY2d at 1058 [no reasonable suspicion where defendant stood in an area known for drug trafficking with an unidentified bulge in his jacket pocket], *and People v Stewart*, 41 NY2d 65, 69 [1976] [“a bulge in the pocket, unlike a waistband bulge, could be caused by any number of innocuous objects. Moreover, the officer conceded that (they) could not have possibly known from

the location and character of the bulge that the defendant was carrying a weapon”], and *People v Sanchez*, 38 NY2d 72, 74-75 [1975] [an unshaped bulge in a front pocket area was “an insufficient ground for . . . suspicion” and did not constitute a “‘particular fact()’ from which an inference could be drawn that defendant posed an imminent danger to (the officer)”]. If any amorphous bulge were sufficient, the Court would have had no reason to discuss in prior cases the particularities of the shape of the bulge and its placement on defendant’s body or clothing. Further, if any unshaped bulge were sufficient to permit a stop and frisk, *De Bour*’s framework would be rendered meaningless. Every person wearing baggy pants or an oversized shirt would be susceptible to forced detention, and courts would have to decide whether a shirtsleeve was sufficiently thick and bulky to provide reasonable suspicion of criminal activity.⁴ *De Bour* was intended to prevent abusive and discriminatory police practices based on these types of vagaries and uncertainties. Individual rights do not depend on stereotype-based assumptions about dress style.

Was it that defendant did not show his hands, a detail the prosecutor was so keen to elicit at the suppression hearing? The officer also could not base defendant’s forcible detention and frisk on defendant’s failure to show his hands when the officer so ordered, because such action is a result, not a cause, of the police officer’s inquiry. The People’s argument to the contrary reveals a profound misunderstanding of the limits on police authorization set forth in *De Bour*. Applying the framework here, under level one Officer Rodriguez approached defendant to ask if he lived in the building based on his observations of defendant in the elevator.⁵ At level two, where there is a founded suspicion of criminal activity, the officer is justified in

4. The “hoodie”—worn by defendant here, and which the testifying officer mentioned in his initial description of the defendant, his answer for why he followed defendant upstairs, and his description of the circumstances that led him to grab defendant’s arm—is a garment particularly susceptible to improper mischaracterization as representing criminal character and justifying raised suspicion (see Cynthia Lee, *Making Race Salient: Trayvon Martin and Implicit Bias in a Not Yet Post-Racial Society*, 91 NC L Rev 1555, 1575-1585, 1576 n 122 [2013] [citing, inter alia, Katherine Boyle, *The Hoodie Label*, Wash Post, Mar. 26, 2012 at C1]).

5. I assume for the purposes of my analysis that the level one inquiry was proper, yet, arguably, there was no legal basis for approaching defendant and asking identification questions. Officer Rodriguez testified that he followed defendant to ask where he lived because, when he saw defendant, defendant was wearing a hoodie, and stepped out of and back into the elevator. While “police officers have fairly broad authority to approach individuals and

(n. cont’d)

asking questions that are “extended and accusatory and the officer’s inquiry focuses on the possible criminality of the person approached” (*Hollman*, 79 NY2d at 191). The founded suspicion must precede the officer’s inquiry; it may not be a product of that intrusion. As the Court explained in *De Bour*:

“Before the police may stop a person pursuant to the common-law right to inquire there must exist at that moment a founded suspicion that criminal activity is present. The police may not justify a stop by a subsequently acquired suspicion resulting from the stop. This reasoning is the same which refuses to validate a search by what it produces. To validate this stop under the common-law power to inquire, we must examine the knowledge possessed at that moment and any reasonable inferences. Although this analysis involves a less stringent degree of belief than probable cause, it should be approached in the same manner so as to permit the use of familiar signposts as points of reference” (40 NY2d at 215-216 [citations omitted]).

Similarly, at level three, the officer must have a reasonable suspicion of particularized criminal action by the person the officer means to stop, basing that suspicion on circumstances prefacing the stop, not on the fact that the person refuses to respond (*see e.g. Stewart*, 41 NY2d at 69 [“Before a police officer ‘places a hand on the person of a citizen in search of anything, he must have constitutionally adequate, reasonable grounds for doing so’ ”], quoting *Sibron v New York*, 392 US 40 [1968]). In *Hollman*, for example, observing two men on a bus place bags together then sit several feet away from those bags

ask questions relating to identity or destination,” that intrusion is only permissible where “the officers do not act on whim or caprice and have an articulable reason not necessarily related to criminality for making the approach” (*Hollman*, 79 NY2d at 190, citing *De Bour*, 40 NY2d at 219). Officer Rodriguez, therefore, was prohibited from acting as he did when he approached and asked defendant questions simply because defendant exercised his constitutional right not to engage with the police. In fact, there is even some question as to whether that was defendant’s intent when he pushed the elevator button, since he only traveled up two floors, unlikely to be sufficient for escape. Then, when he was approached by officers on the ninth floor, rather than flee, he merely sought to avoid interaction and potential conflict. In that tense situation, in which a body movement, or even eye movement, could be misinterpreted as “furtive,” “sudden,” or “dangerous,” raising alarm in the officers and potentially costing an individual their life, it was, at the very least, not suspicious for defendant to turn around and face the wall, remaining silent and motionless.

“gave rise to an objective credible reason, not necessarily indicative of criminality, for approaching the two men”; the men denying they brought any bags, despite officer’s previous observation to the contrary, aroused “founded suspicion that criminality was afoot”; and only upon asking about ownership of the particular bags, a level two intrusion, and the men denying ownership did suspicion rise to allow the officer to lawfully search the bags (79 NY2d at 193). In comparison, where an individual appeared nervous, scanned the terminal, and hesitated upon eye contact with a police officer, the officer nonetheless “crossed the line . . . when he asked to search the defendant’s bag. The defendant’s behavior, while it may have provided the officer with adequate basis for an approach and for a few general, nonaccusatory questions, was certainly not so suspicious as to warrant the further intrusion of a request to rummage through the defendant’s luggage” (*id.* at 194; *see also De Bour*, 40 NY2d at 216). “Since a police encounter cannot be validated by a later-acquired suspicion, [an officer’s] subsequent observations of defendant do not cleanse the initial request of its shortcomings under *De Bour* and *Hollman*” (*McIntosh*, 96 NY2d at 527 [citation omitted]). Nor can levels two and three be collapsed such that the same conduct used to satisfy level two is recycled to provide reasonable suspicion for a forcible stop and frisk (*see Moore*, 6 NY3d at 500). Thus, the officer did not have a founded or reasonable suspicion of criminal activity based on defendant’s nonresponse.

The People’s reliance on defendant’s placement of his hands and failure to comply with the officer’s demands suggests that members of the public must affirmatively respond to officers or risk forfeiting their freedom, a proposition we have clearly and unequivocally rejected. As the Court explained in *Moore*,

“[i]f merely walking away from the police were sufficient to raise the level of suspicion to reasonable suspicion—and a suspect who attempted to move could be required to remain in place at the risk of forcible detention—the common-law right of inquiry would be tantamount to the right to conduct a forcible stop and the suspect would be effectively seized whenever only a common-law right of inquiry was justified” (6 NY3d at 500 [citation omitted]).

Rather, “innocuous behavior alone will not generate a founded or reasonable suspicion that a crime is at hand” (*id.* at 501, quoting *De Bour*, 40 NY2d at 216).

For the reasons I have discussed, none of these circumstances, in isolation or cumulatively, establishes reasonable suspicion that defendant had or was about to commit a crime⁶ (see *People v Carrasquillo*, 54 NY2d 248, 251 [1981] [“untidy” clothes and “frizzled up” hair, meeting an officer’s eyes, and subsequently making a “quick” turn at a corner, “neither singly nor in combination, constituted other than innocuous behavior, sole reliance on which would impermissibly reduce the foundation for any intrusion to nothing but whim or caprice” (internal quotation marks and citations omitted)]). When defendant remained silent and turned to face the wall, “[t]he officers had no information that a crime had occurred or was about to take place, had not seen defendant do anything criminal, and were confronted only by facts susceptible of innocent interpretation” (see *Howard*, 50 NY2d at 590). At that point, defendant “remained free to continue about his business without risk of forcible detention” (see *Moore*, 6 NY3d at 500), and the police should have honored his right to be left alone.

The People’s claim that defendant’s failure to act—that he said nothing and did nothing despite the officer’s demands for a response—justified the heightened intrusion turns the law on its head. The governing premise of the *De Bour* framework is that a greater police intrusion is permissible only after the situation escalates. In other words, that “various intensities of police action are justifiable” only “as the precipitating and attendant factors increase in weight and competence” (*De Bour*, 40 NY2d at 223). It is because of the potential for abuse, given “the rapidity with which suspicion can escalate,” that “we must place limits on the power of the police to pick out targets and subject them to invasive questioning based on nothing more than the objective and credible reason required for a request for information” (*Hollman*, 79 NY2d at 191).

IV.

As I have previously argued, police encounters must be scrutinized carefully for constitutional compliance in order to avoid the criminalization of indeterminate behavior based on the nature of the surroundings or a person’s attempts to avoid

6. Since the People’s evidence does not satisfy the “minimum showing necessary” to warrant a level three forcible detainment and frisk (*McRay*, 51 NY2d 594, 601), a fortiori, under the majority’s mixed question analysis there is no record support for the lower courts’ determination that the police acted appropriately.

contact with law enforcement (*see Barksdale*, 26 NY3d at 144 [Rivera, J., dissenting]; *People v Argyris*, 24 NY3d 1138, 1169 [2014, Rivera, J., dissenting]; *People v Clermont*, 22 NY3d 931, 934 [2013, Rivera, J., dissenting]). Our Court's recent approach to police interactions with the public, both on the streets and private property—including the decision in the instant appeal—risks authorizing the escalation of police-initiated encounters where a person exercises the right to be let alone, giving license to violations of the right to privacy. I believe the Court is charting a dangerous course, one that has the potential to render appellate judicial review meaningless, imperil individual liberty, and diminish civil rights. Therefore, I dissent.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Rivera dissents in an opinion in which Judge Wilson concurs.

Order, insofar as appealed from, affirmed, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2018 through March 31, 2018)

<i>People v Abdallah</i>	2d Dept: 153 AD3d 1424 (Queens)	denied 3/21/18 (Stein, J.)
<i>People v Abdur-Rahman</i>	3d Dept: 156 AD3d 1236 (Albany)	denied 3/30/18 (Fahey, J.)
<i>People v Adger</i>	4th Dept: 156 AD3d 1458 (Monroe)	denied 3/22/18 (Garcia, J.)
<i>People v Afolabi</i>	2d Dept: 156 AD3d 810 (Kings)	denied 3/13/18 (Feinman, J.)
<i>People v Alfieri (Henri)</i>	4th Dept: 156 AD3d 1445 (Niagara)	denied 3/29/18 (Rivera, J.)
<i>People v Alfieri (Henri)</i>	4th Dept: 156 AD3d 1446 (Niagara)	denied 3/29/18 (Rivera, J.)
<i>People v Allen</i>	2d Dept: 157 AD3d 810 (Queens)	denied 3/29/18 (Feinman, J.)
<i>People v Almanzar</i>	App Term, 1st Dept: 57 Misc 3d 159(A) (NY)	denied 3/19/18 (Stein, J.)
<i>People v Alston</i>	2d Dept: 155 AD3d 887 (Nassau)	denied 3/19/18 (Stein, J.)
<i>People v Amankwah</i>	1st Dept: 157 AD3d 449 (NY)	denied 3/21/18 (Wilson, J.)
<i>People v Amay</i>	2d Dept: 156 AD3d 895 (Putnam)	denied 3/29/18 (Feinman, J.)
<i>People v Andujar</i>	3d Dept: 156 AD3d 1060 (Albany)	denied 3/21/18 (DiFiore, Ch. J.)

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People v Armendariz	4th Dept: 156 AD3d 1383 (Wayne)	denied 3/16/18 (Rivera, J.)
People v Arpi	App Div, 2d Dept: 2017 NY Slip Op 90851(U) (Westchester)	denied reconsideration 3/29/18 (Wilson, J.)
People v Atkins	3d Dept: 154 AD3d 1064 (Madison)	dismissed 3/14/18 (Garcia, J.)
People v Baby	2d Dept: 156 AD3d 902 (Suffolk)	denied 3/14/18 (Fahey, J.)
People v Bailey (Carrien)	App Term, 1st Dept: 57 Misc 3d 151(A) (Bronx)	denied 3/12/18 (Garcia, J.)
People v Bailey (Wilbur)	3d Dept: 157 AD3d 1133 (Franklin)	denied 3/29/18 (Wilson, J.)
People v Bailey (Wilbur)	3d Dept: 157 AD3d 1135 (Franklin)	denied 3/29/18 (Wilson, J.)
People v Baker	4th Dept: 156 AD3d 1485 (Monroe)	denied 3/29/18 (Rivera, J.)
People v Baldwin	4th Dept: 156 AD3d 1356 (Erie)	denied 3/21/18 (Garcia, J.)
People v Barry (Hamadou)	App Term, 1st Dept: 58 Misc 3d 144(A) (NY)	denied 3/15/18 (DiFiore, Ch. J.)
People v Barry (Hamido)	App Term, 1st Dept: 58 Misc 3d 144(A) (NY)	denied 3/15/18 (DiFiore, Ch. J.)
People v Barry (Manadou)	App Term, 1st Dept: 58 Misc 3d 144(A) (NY)	denied 3/15/18 (DiFiore, Ch. J.)
People v Basil	4th Dept: 156 AD3d 1416 (Erie)	denied 3/29/18 (Stein, J.)
People v Bateman	3d Dept: 151 AD3d 1482 (St. Lawrence)	denied 3/30/18 (Fahey, J.)
People v Beaubrun	2d Dept: 156 AD3d 896 (Nassau)	denied 3/7/18 (Fahey, J.)
People v Beck	1st Dept: 157 AD3d 500 (NY)	denied 3/30/18 (Fahey, J.)
People v Black	3d Dept: 156 AD3d 1054 (Albany)	denied 3/1/18 (Garcia, J.)
People v Blauvelt	4th Dept: 156 AD3d 1333 (Cayuga)	denied 3/16/18 (Rivera, J.)
People v Bonds	2d Dept: 157 AD3d 713 (Kings)	denied 3/14/18 (Garcia, J.)
People v Bottex	1st Dept: 157 AD3d 592 (NY)	denied 3/26/18 (Stein, J.)
People v Bowie	2d Dept: 156 AD3d 649 (Orange)	denied 3/15/18 (DiFiore, Ch. J.)
People v Brockington	1st Dept: 156 AD3d 508 (NY)	denied 3/16/18 (Rivera, J.)
People v Brooks	3d Dept: 155 AD3d 1429 (Ulster)	denied 3/23/18 (DiFiore, Ch. J.)
People v Brown	3d Dept: 156 AD3d 1248 (Albany)	denied 3/27/18 (DiFiore, Ch. J.)

People v Bruno	2d Dept: 156 AD3d 650 (Kings)	denied 3/12/18 (Garcia, J.)
People v Calderon	1st Dept: 157 AD3d 466 (Bronx)	denied 3/21/18 (Wilson, J.)
People v Camarano	App Div, 1st Dept, 10/5/17 (NY)	dismissed 3/26/18 (Stein, J.)
People v Cambridge	2d Dept: 154 AD3d 774 (Westchester)	denied 3/22/18 (Garcia, J.)
People v Campbell (Earl)	1st Dept: 155 AD3d 470 (NY)	denied 3/2/18 (DiFiore, Ch. J.)
People v Campbell (Glen)	2d Dept: 157 AD3d 715 (Nassau)	denied 3/21/18 (DiFiore, Ch. J.)
People v Carter	App Div, 2d Dept: 2017 NY Slip Op 95299(U) (Queens)	dismissed 3/16/18 (Rivera, J.)
People v Cespedes	App Term, 1st Dept: 58 Misc 3d 148(A) (NY)	denied 3/30/18 (Fahey, J.)
People v Cherry	1st Dept: 156 AD3d 578 (NY)	denied 3/13/18 (DiFiore, Ch. J.)
People v Chery	2d Dept: 157 AD3d 812 (Kings)	denied 3/23/18 (DiFiore, Ch. J.)
People v Christian	1st Dept: 156 AD3d 560 (NY)	denied 3/5/18 (Wilson, J.)
People v Cicio	1st Dept: 157 AD3d 651 (Bronx)	denied 3/21/18 (Garcia, J.)
People v Clemente	2d Dept: 156 AD3d 716 (Queens)	denied 3/16/18 (Rivera, J.) (Appeal Nos. 1 and 2)
People v Coe	1st Dept: 157 AD3d 647 (Bronx)	denied 3/27/18 (DiFiore, Ch. J.)
People v Colesone	1st Dept: 157 AD3d 475 (NY)	denied 3/12/18 (Garcia, J.)
People v Colon (Cristobal)	1st Dept: 157 AD3d 437 (NY)	denied 3/8/18 (Garcia, J.)
People v Colon (Luis)	4th Dept: 156 AD3d 1469 (Erie)	denied 3/12/18 (Garcia, J.)
People v Contreras	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 58 Misc 3d 132(A) (Kings)	denied 3/15/18 (Feinman, J.)
People v Crimmins	2d Dept: 157 AD3d 715 (Suffolk)	denied 3/29/18 (Rivera, J.)
People v Crump	1st Dept: 154 AD3d 472 (Bronx)	denied 3/16/18 (Fahey, J.)
People v Cruz	App Term, 1st Dept: 58 Misc 3d 146(A) (NY)	denied 3/27/18 (DiFiore, Ch. J.)
People v Cudjoe	1st Dept: 156 AD3d 581 (Bronx)	denied 3/30/18 (Fahey, J.)
People v Cummings	3d Dept: 157 AD3d 982 (Clinton)	denied 3/29/18 (Feinman, J.)
People v Currie	App Div, 2d Dept: 2017 NY Slip Op 96825(U) (Nassau)	dismissed 3/14/18 (Garcia, J.)

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People v Cuthbertson	1st Dept: 157 AD3d 451 (NY)	denied 3/12/18 (Garcia, J.)
People v Dainty	County Ct, 11/28/17 (Ontario)	denied 3/12/18 (Garcia, J.)
People v D'Angelo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 58 Misc 3d 150(A) (Richmond)	denied 3/29/18 (Feinman, J.)
People v Darabie	1st Dept: 157 AD3d 432 (NY)	denied 3/7/18 (Fahey, J.)
People v Davenport	App Term, 1st Dept: 57 Misc 3d 158(A) (NY)	denied 3/29/18 (Rivera, J.)
People v Daymon	4th Dept: 156 AD3d 1417 (Monroe)	denied 3/12/18 (Garcia, J.)
People v Delayo	3d Dept: 158 AD3d 852 (Schenectady)	denied 3/29/18 (Rivera, J.)
People v Delp	4th Dept: 156 AD3d 1450 (Niagara)	denied 3/15/18 (Feinman, J.)
People v Diaz	1st Dept: 157 AD3d 477 (NY)	denied 3/7/18 (Fahey, J.)
People v Dobbs	3d Dept: 157 AD3d 1122 (Albany)	denied 3/19/18 (DiFiore, Ch. J.)
People v Driver (Alioune)	2d Dept: 154 AD3d 958 (Kings)	denied 3/29/18 (Feinman, J.)
People v Driver (Iloune)	2d Dept: 154 AD3d 958 (Kings)	denied 3/29/18 (Feinman, J.)
People v Dukes	4th Dept: 156 AD3d 1443 (Monroe)	denied 3/15/18 (Feinman, J.)
People v Dylan G.	2d Dept: 156 AD3d 901 (Kings)	denied 3/14/18 (Fahey, J.)
People v Edwards	1st Dept: 157 AD3d 504 (NY)	denied 3/14/18 (Fahey, J.)
People v Elleby	App Div, 1st Dept: 2018 NY Slip Op 60549(U) (NY)	denied 3/28/18 (DiFiore, Ch. J.)
People v Elliot	County Ct, 12/19/17 (Saratoga)	denied 3/15/18 (DiFiore, Ch. J.)
People v Evans	1st Dept: 157 AD3d 433 (NY)	denied 3/29/18 (Wilson, J.)
People v Felder	App Term, 1st Dept: 58 Misc 3d 146(A) (NY)	denied 3/26/18 (Stein, J.)
People v Finnerty	App Term, 2d Dept, 9th & 10th Jud Dists: 58 Misc 3d 145(A) (Westchester)	denied 3/15/18 (Feinman, J.)
People v Franklin	App Div, 1st Dept: 2017 NY Slip Op 87243(U) (NY)	denied 3/21/18 (DiFiore, Ch. J.)
People v Frederick	2d Dept: 156 AD3d 901 (Suffolk)	denied 3/29/18 (Stein, J.)
People v Garcia (Frank)	4th Dept: 156 AD3d 1492 (Ontario)	denied 3/29/18 (Rivera, J.)
People v Garcia (Luis)	4th Dept: 155 AD3d 1570 (Niagara)	denied 3/15/18 (Feinman, J.)
People v Gause	3d Dept: 157 AD3d 1167 (Schenectady)	denied 3/22/18 (Garcia, J.)

People v Gentile	2d Dept: 156 AD3d 814 (Queens)	denied 3/29/18 (Feinman, J.)
People v Gonzalez	2d Dept: 153 AD3d 1433 (Queens)	denied 3/30/18 (Fahey, J.)
People v Goode	1st Dept: 157 AD3d 620 (NY)	denied 3/20/18 (DiFiore, Ch. J.)
People v Gooley	3d Dept: 156 AD3d 1231 (Columbia)	denied 3/30/18 (Fahey, J.)
People v Gousse	2d Dept: 156 AD3d 815 (Nassau)	denied 3/16/18 (Rivera, J.)
People v Griswold	4th Dept: 155 AD3d 1658 (Onondaga)	denied 3/21/18 (Stein, J.)
People v Guberman	2d Dept: 156 AD3d 815 (Suffolk)	denied 3/21/18 (Wilson, J.)
People v Guest	4th Dept: 156 AD3d 1457 (Erie)	denied 3/16/18 (Rivera, J.)
People v Gutierrez	1st Dept: 157 AD3d 611 (NY)	denied 3/30/18 (Fahey, J.)
People v Guzman	2d Dept: 156 AD3d 902 (Suffolk)	denied 3/14/18 (Fahey, J.)
People v Halteman	1st Dept: 156 AD3d 405 (NY)	denied 3/1/18 (DiFiore, Ch. J.)
People v Harleston	1st Dept: 157 AD3d 441 (NY)	denied 3/15/18 (Stein, J.)
People v Harley	App Term, 1st Dept: 57 Misc 3d 158(A) (NY)	denied 3/16/18 (Rivera, J.)
People v Hernandez	2d Dept: 153 AD3d 1433 (Queens)	denied 3/30/18 (Fahey, J.)
People v Herring	App Div, 4th Dept, 10/2/17 (Monroe)	denied reconsideration 3/5/18 (Stein, J.)
People v Hidalgo	1st Dept: 157 AD3d 459 (NY)	denied 3/29/18 (Wilson, J.)
People v Hines	App Div, 2d Dept: 2017 NY Slip Op 96830(U) (Westchester)	dismissed 3/12/18 (Feinman, J.)
People v Houston	App Div, 2d Dept: 2018 NY Slip Op 61180(U) (Kings)	dismissed 3/15/18 (DiFiore, Ch. J.)
People v Hunt	2d Dept: 153 AD3d 855 (Kings)	denied 3/7/18 (Fahey, J.)
People v Johnson	2d Dept: 157 AD3d 964 (Kings)	denied 3/22/18 (Stein, J.)
People v Jones	3d Dept: 155 AD3d 1111 (Schuyler)	denied 3/21/18 (Wilson, J.)
People v Jordan (Daion)	4th Dept: 156 AD3d 1448 (Erie)	denied 3/16/18 (Rivera, J.)
People v Jordan (Tony)	1st Dept: 157 AD3d 413 (NY)	denied 3/7/18 (Fahey, J.)
People v Kellman	1st Dept: 154 AD3d 410 (NY)	denied 3/30/18 (Fahey, J.)
People v Kiah	3d Dept: 156 AD3d 1054 (Albany)	denied 3/1/18 (Garcia, J.)

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People v Lanaux	4th Dept: 156 AD3d 1459 (Onondaga)	denied 3/29/18 (Feinman, J.)
People v Laurent	4th Dept: 156 AD3d 1489 (Ontario)	denied 3/12/18 (Garcia, J.)
People v Lay Low	3d Dept: 155 AD3d 1429 (Ulster)	denied 3/23/18 (DiFiore, Ch. J.)
People v Little	2d Dept: 156 AD3d 816 (Queens)	denied 3/30/18 (Fahey, J.)
People v Lopez (Louis)	4th Dept: 156 AD3d 1448 (Erie)	denied 3/6/18 (Stein, J.)
People v Lopez (Teofilo)	1st Dept: 154 AD3d 406 (NY)	denied 3/29/18 (DiFiore, Ch. J.)
People v Maldonado	2d Dept: 156 AD3d 817 (Suffolk)	denied 3/1/18 (Garcia, J.)
People v Martin	3d Dept: 156 AD3d 956 (Albany)	denied 3/29/18 (Feinman, J.)
People v Martin-Brown	4th Dept: 156 AD3d 1392 (Erie)	denied 3/26/18 (Stein, J.)
People v Mason	1st Dept: 157 AD3d 439 (NY)	denied 3/22/18 (Stein, J.)
People v Medel-Dominguez	App Term, 1st Dept: 58 Misc 3d 130(A) (Bronx)	denied 3/22/18 (Wilson, J.)
People v Meyer	4th Dept: 156 AD3d 1421 (Onondaga)	denied 3/15/18 (Stein, J.)
People v Mitchell	2d Dept: 156 AD3d 817 (Westchester)	denied 3/5/18 (Stein, J.)
People v Mobley	2d Dept: 157 AD3d 826 (Nassau)	denied 3/27/18 (Garcia, J.)
People v Mondo	4th Dept: 156 AD3d 1492 (Erie)	denied 3/29/18 (Wilson, J.)
People v Morales (Christopher)	1st Dept: 157 AD3d 431 (NY)	denied 3/7/18 (Fahey, J.)
People v Morales (Cristian)	App Term, 2d Dept, 9th & 10th Jud Dists: 57 Misc 3d 153(A) (Nassau)	denied 3/21/18 (DiFiore, Ch. J.)
People v Mosley	3d Dept: 155 AD3d 1124 (Rensselaer)	denied 3/20/18 (DiFiore, Ch. J.)
People v Moss	App Div, 2d Dept: 2017 NY Slip Op 96462(U) (Nassau)	dismissed 3/19/18 (Rivera, J.)
People v Murphy	App Term, 1st Dept: 57 Misc 3d 136(A) (Bronx)	denied 3/7/18 (Fahey, J.)
People v Murray	3d Dept: 156 AD3d 1231 (Columbia)	denied 3/30/18 (Fahey, J.)
People v Myles	4th Dept: 156 AD3d 1474 (Niagara)	denied 3/21/18 (Wilson, J.)
People v Newbeck	2d Dept: 157 AD3d 908 (Suffolk)	denied 3/29/18 (Wilson, J.)
People v Nicholson	2d Dept: 156 AD3d 903 (Suffolk)	denied 3/12/18 (DiFiore, Ch. J.)
People v Nisimow	App Term, 1st Dept: 58 Misc 3d 133(A) (Bronx)	denied 3/29/18 (Rivera, J.)

People v Norman	3d Dept: 154 AD3d 1185 (Saratoga)	denied 3/28/18 (DiFiore, Ch. J.)
People v Nunez-Bencosme	2d Dept: 156 AD3d 903 (Westchester)	denied 3/7/18 (Fahey, J.)
People v Odorno	1st Dept: 157 AD3d 603 (NY)	denied 3/20/18 (Garcia, J.)
People v Owens	App Term, 1st Dept: 58 Misc 3d 145(A) (NY)	denied 3/21/18 (Wilson, J.)
People v Pabon	3d Dept: 157 AD3d 1057 (Montgomery)	denied 3/30/18 (Fahey, J.)
People v Peguero	1st Dept: 157 AD3d 453 (NY)	denied 3/12/18 (Garcia, J.)
People v Pringle	4th Dept: 155 AD3d 1660 (Erie)	denied 3/13/18 (Feinman, J.)
People v Ramcharan	1st Dept: 157 AD3d 557 (NY)	denied 3/29/18 (Rivera, J.)
People v Roberites	4th Dept: 153 AD3d 1650 (Livingston)	denied reconsideration 3/27/18 (Garcia, J.)
People v Robinson	4th Dept: 154 AD3d 1334 (Onondaga)	denied 3/29/18 (Feinman, J.)
People v Rodriguez (Amy)	1st Dept: 157 AD3d 477 (NY)	denied 3/12/18 (DiFiore, Ch. J.)
People v Rodriguez (Jesse)	App Term, 2d Dept, 9th & 10th Jud Dists: 58 Misc 3d 149(A) (Westchester)	denied 3/20/18 (Garcia, J.)
People v Rodriguez (Robert)	1st Dept: 157 AD3d 564 (NY)	denied 3/13/18 (Garcia, J.)
People v Rogers	4th Dept: 156 AD3d 1350 (Onondaga)	denied 3/29/18 (Feinman, J.)
People v Romano	App Term, 1st Dept: 58 Misc 3d 147(A) (NY)	denied 3/28/18 (Wilson, J.)
People v Rose	3d Dept: 155 AD3d 1322 (Broome)	denied 3/29/18 (Rivera, J.)
People v Ruiz	2d Dept: 156 AD3d 912 (Queens)	denied 3/29/18 (Rivera, J.)
People v St. Mary	3d Dept: 157 AD3d 1168 (Franklin)	denied 3/30/18 (Fahey, J.)
People v Samuda-Riley	App Term, 1st Dept: 57 Misc 3d 159(A) (NY)	denied 3/19/18 (DiFiore, Ch. J.)
People v Sanabria	1st Dept: 158 AD3d 416 (NY)	denied 3/27/18 (Garcia, J.)
People v Sanchez	1st Dept: 157 AD3d 596 (NY)	denied 3/20/18 (DiFiore, Ch. J.)
People v Sands	3d Dept: 157 AD3d 1136 (Washington)	denied 3/22/18 (DiFiore, Ch. J.)
People v Sanford	1st Dept: 156 AD3d 433 (NY)	denied 3/21/18 (Wilson, J.)
People v Sassi	2d Dept: 157 AD3d 830 (Dutchess)	denied 3/29/18 (DiFiore, Ch. J.)

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People v Schwarz	App Div, 1st Dept: 2017 NY Slip Op 86365(U) (NY)	dismissed 3/5/18 (Stein, J.)
People v Shaquille D.	1st Dept: 157 AD3d 419 (NY)	denied 3/22/18 (Stein, J.)
People v Siad	1st Dept: 147 AD3d 465 (NY)	denied 3/29/18 (Rivera, J.)
People v Simpson	App Div, 1st Dept: 2017 NY Slip Op 81416(U) (Bronx)	denied reconsideration 3/27/18 (Wilson, J.)
People v Singh	1st Dept: 156 AD3d 437 (Bronx)	denied 3/21/18 (Wilson, J.)
People v Smith (Adam)	2d Dept: 156 AD3d 944 (Kings)	denied 3/15/18 (Feinman, J.)
People v Smith (Leon)	4th Dept: 156 AD3d 1336 (Oneida)	denied 3/20/18 (Stein, J.)
People v Smith (Virgilio)	3d Dept: 157 AD3d 1059 (Schenectady)	denied 3/30/18 (Fahey, J.)
People v Soto	App Term, 1st Dept: 58 Misc 3d 133(A) (NY)	denied 3/23/18 (DiFiore, Ch. J.)
People v Sparks (Alvin)	App Term, 1st Dept: 58 Misc 3d 149(A) (Bronx)	denied 3/20/18 (Garcia, J.)
People v Sparks (Henry)	App Div, 4th Dept: 2017 NY Slip Op 94846(U) (Erie)	denied 3/22/18 (Stein, J.)
People v Steinhilber	2d Dept: 156 AD3d 733 (Orange)	denied 3/20/18 (Stein, J.)
People v Stokes	County Ct, 1/22/18 (Cayuga)	denied 3/29/18 (Feinman, J.)
People v Stuckey	1st Dept: 157 AD3d 547 (Bronx)	denied 3/27/18 (Wilson, J.)
People v Swanson	County Ct, 4/14/17 (Ontario)	denied 3/12/18 (Garcia, J.)
People v Sweat	App Term, 1st Dept: 57 Misc 3d 159(A) (NY)	denied 3/13/18 (DiFiore, Ch. J.)
People v Tarafa	App Div, 1st Dept: 2017 NY Slip Op 95444(U) (Bronx)	denied 3/15/18 (DiFiore, Ch. J.)
People v Thomas (Janet)	2d Dept: 156 AD3d 915 (Kings)	denied 3/29/18 (Feinman, J.)
People v Thomas (John)	2d Dept: 157 AD3d 723 (Kings)	denied 3/26/18 (Stein, J.)
People v Tor (Buddha)	App Div, 1st Dept: 2017 NY Slip Op 93443(U) (Bronx)	denied 3/30/18 (Fahey, J.)
People v Tor (Budha)	App Div, 1st Dept: 2017 NY Slip Op 93443(U) (Bronx)	denied 3/30/18 (Fahey, J.)
People v Torres	4th Dept: 156 AD3d 1492 (Erie)	denied 3/29/18 (Wilson, J.)
People v Tribble	3d Dept: 156 AD3d 1239 (Rensselaer)	denied 3/1/18 (Garcia, J.)
People v Turner	1st Dept: 157 AD3d 421 (NY)	denied 3/1/18 (Garcia, J.)

People v Vaughan	2d Dept: 156 AD3d 826 (Westchester)	denied 3/21/18 (Wilson, J.)
People v Vickers	3d Dept: 156 AD3d 1236 (Albany)	denied 3/30/18 (Fahey, J.)
People v Viggiano	2d Dept: 157 AD3d 912 (Richmond)	denied 3/22/18 (Garcia, J.)
People v Villanueva	1st Dept: 157 AD3d 422 (NY)	denied 3/5/18 (Wilson, J.)
People v Waldon	2d Dept: 157 AD3d 913 (Queens)	denied 3/29/18 (Feinman, J.)
People v White (Carlos)	4th Dept: 156 AD3d 1489 (Monroe)	denied 3/27/18 (Wilson, J.)
People v White (Randiese)	3d Dept: 156 AD3d 1249 (Albany)	denied 3/21/18 (Wilson, J.)
People v Wigfall	App Term, 1st Dept: 58 Misc 3d 126(A) (NY)	denied 3/16/18 (Fahey, J.)
People v Williams	4th Dept: 156 AD3d 1433 (Erie)	denied 3/29/18 (Wilson, J.)
People v Witherspoon	2d Dept: 156 AD3d 828 (Suffolk)	denied 3/1/18 (Garcia, J.)
People v Worrell	2d Dept: 157 AD3d 727 (Kings)	denied 3/15/18 (Feinman, J.)
People v Yarborough	1st Dept: 158 AD3d 430 (NY)	denied 3/22/18 (Garcia, J.)
People v Yeong Sook Shin	App Div, 1st Dept: 2017 NY Slip Op 92221(U) (NY)	denied 3/20/18 (Garcia, J.)
People v Zalevsky	2d Dept: 154 AD3d 977 (Kings)	denied reconsideration 3/5/18 (Stein, J.)
People v Zeman	4th Dept: 156 AD3d 1460 (Onondaga)	denied 3/27/18 (Stein, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(March 1, 2018 through March 31, 2018)

People v Rong He	2d Dept: 157 AD3d 907 (Kings)	granted 3/2/18 (Hall, J.)
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[97 NE3d 396, 73 NYS3d 787]

KAREN GRAVANO, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

Argued February 7, 2018; decided March 29, 2018

* Includes only applications that were granted.

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 1, 2016. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, New York County (Joan M. Kenney, J.; op 2016 NY Slip Op 32871[U] [2016]), which had, to the extent appealed from, denied defendants' motion to dismiss the first cause of action alleging a violation of the right to privacy pursuant to Civil Rights Law §§ 50 and 51 and for sanctions. The modification consisted of granting the part of the motion seeking to dismiss.

Gravano v Take-Two Interactive Software, Inc., 142 AD3d 776, affirmed.

HEADNOTE

Civil Rights — Right of Privacy — Use of Image in Video Game

An Appellate Division order dismissing plaintiff's cause of action alleging a violation of her right to privacy under Civil Rights Law §§ 50 and 51 was affirmed. While a computer-generated image may constitute a "portrait" within the meaning of the statutes, plaintiff was not recognizable from the images at issue, namely, an avatar in the video game in question.

APPEARANCES OF COUNSEL

Law Office of Thomas A. Farinella, PC, New York City (Thomas A. Farinella of counsel), for appellant.

Debevoise & Plimpton LLP, New York City (Jeremy Feigelson, Jared I. Kagan and Alexandra P. Swain of counsel), for respondents.

Patrick S. Kabat, The First Amendment and the Arts Project, The Spangenberg Center for Law, Technology & The Arts, Case Western Reserve University School of Law, Cleveland, Ohio, for Jarryd Huntley, amicus curiae.

Davis Wright Tremaine LLP, New York City (Robert D. Balin and Samuel M. Bayard of counsel), and Los Angeles, California (Kelli L. Sager of counsel), for The Motion Picture Association of America, Inc. and another, amici curiae.

Jenner & Block LLP, Washington, D.C. (Kenneth L. Doroshov and Devi M. Rao of counsel), and *Stanley Pierre-Louis, Entertainment Software Association*, Washington, D.C., for Entertainment Software Association, amicus curiae.

Dentons US LLP, New York City (*Michael A. Bamberger* and *Richard M. Zuckerman* of counsel), for American Booksellers Association and others, amici curiae.

Hartman & Winnicki, P.C., Ridgewood, New Jersey (*Daniel L. Schmutter* of counsel), and *Eugene Volokh, Scott & Cyan Banister First Amendment Clinic, UCLA School of Law*, Los Angeles, California, for Eric M. Freedman and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed, with costs. A computer-generated image may constitute a “portrait” within the meaning of Civil Rights Law §§ 50 and 51 (*see Lohan v Take-Two Interactive Software, Inc.*, 31 NY3d 111, 121-122 [2018] [decided herewith]). Plaintiff, however, is not recognizable from the images at issue here, namely, the “Antonia Bottino” avatar in the video game in question (*see Cohen v Herbal Concepts*, 63 NY2d 379, 384 [1984]).

In view of our determination, we do not address plaintiff’s additional contentions.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Feinman concur; Judge Wilson taking no part.

Order, insofar as appealed from, affirmed, with costs, in a memorandum.

NIURKA ANDINO, Respondent-Appellant, v RONALD MILLS et al.,
Appellants-Respondents. (And a Third-Party Action.)

Submitted March 26, 2018; decided March 29, 2018

Reported below, 135 AD3d 407.

Motion by City of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

GEORGE BERAKA, M.D., Respondent, v DANIELLE BITON et al.,
Appellants.

Submitted February 20, 2018; decided March 29, 2018

Reported below, 2017 NY Slip Op 83474(U).

Motion for reargument of motion for leave to appeal denied
[see 30 NY3d 1080 (2018)].

B.F. et al., Respondents, v REPRODUCTIVE MEDICINE ASSOCIATES
OF NEW YORK, LLP, et al., Appellants.

MARIE DENNEHY et al., Respondents, v ALAN B. COPPERMAN,
M.D., et al., Appellants.

Submitted January 29, 2018; decided March 29, 2018

Reported below, 136 AD3d 73.

Motion for reargument denied [see 30 NY3d 608 (2017)].

Judge FEINMAN taking no part.

B.F. et al., Respondents, v REPRODUCTIVE MEDICINE ASSOCIATES
OF NEW YORK, LLP, et al., Appellants.

MARIE DENNEHY et al., Respondents, v ALAN B. COPPERMAN,
M.D., et al., Appellants.

Submitted January 29, 2018; decided March 29, 2018

Reported below, 136 AD3d 73.

Motion for reargument denied [see 30 NY3d 608 (2017)].

Judge FEINMAN taking no part.

DANIELLE BITON et al., Appellants, v ALOFT CORPORATE TRAVEL,
INC., et al., Respondents.

Submitted February 20, 2018; decided March 29, 2018

Reported below, 2008 NY Slip Op 79906(U).

Motion for reargument of motion for leave to appeal denied
[see 30 NY3d 1080 (2018)].

CRYSTAL BITON, Appellant, v BAXTER HEALTHCARE CORPORATION
et al., Respondents.

Submitted February 20, 2018; decided March 29, 2018

Reported below, 2017 NY Slip Op 73157(U); 2017 NY Slip Op 66958(U); 99 AD3d 425.

Motion for reargument of motion for leave to appeal etc.
denied [*see* 30 NY3d 1081 (2018)].

CRYSTAL BITON, Appellant, v COMMISSION ON JUDICIAL CONDUCT
OF THE STATE OF NEW YORK et al., Respondents.

Submitted February 20, 2018; decided March 29, 2018

Motion for reargument of motion for leave to appeal denied
[*see* 30 NY3d 1081 (2018)].

Judge FEINMAN taking no part.

DANIELLE BITON et al., Appellants, v AMEENA MEER et al.,
Respondents.

Submitted February 20, 2018; decided March 29, 2018

Reported below, 2017 NY Slip Op 77379(U).

Motion for reargument of motion for leave to appeal etc.
denied [*see* 30 NY3d 1081 (2018)].

CRYSTAL BITON, Also Known as SAPHYRE REDFORD, et al., Ap-
pellants, v STATE FARM INSURANCE COMPANY et al., Respon-
dents.

Submitted January 8, 2018; decided March 29, 2018

Reported below, 2017 NY Slip Op 81969(U).

Motion for reargument of motion for leave to appeal etc.
denied [*see* 30 NY3d 1008 (2017)].

CRYSTAL BITON, Also Known as SAPHYRE REDFORD, Appellant, v
JOE TURCO et al., Respondents.

Submitted February 20, 2018; decided March 29, 2018

Reported below, 88 AD3d 519.

Motion for reargument of motion for leave to appeal denied [see 30 NY3d 1081 (2018)].

Judge FEINMAN taking no part.

DANIELLE BITTON, Also Known as DANIELLE BITON, Appellant, v
H.S.B.C. et al., Respondents.

Submitted January 8, 2018; decided March 29, 2018

Reported below, 2017 NY Slip Op 79497(U).

Motion for reargument of motion for leave to appeal etc.
denied [see 30 NY3d 1008 (2017)].

In the Matter of the Claim of SHARON K. BLAND, Appellant, v
GELLMAN, BRYDGES & SCHROFF et al., Respondents. WORK-
ERS' COMPENSATION BOARD, Respondent. (Claim No. 1.)

In the Matter of the Claim of SHARON K. BLAND, Appellant, v
RONCO COMMUNICATIONS et al., Respondents. WORKERS'
COMPENSATION BOARD, Respondent. (Claim No. 2.)

Submitted February 13, 2018; decided March 29, 2018

Reported below, 151 AD3d 1484.

Motion for reargument of motion for leave to appeal denied
[see 30 NY3d 1035 (2017)].

Judge STEIN taking no part.

CAPITAL ONE BANK (USA) NA, Respondent, v ARCHIE VELEZ,
Appellant.

Submitted February 5, 2018; decided March 29, 2018

Motion for leave to appeal dismissed upon the ground that
the Court of Appeals does not have jurisdiction to entertain it
(see NY Const, art VI, § 3; CPLR 5602). Motion for poor person
relief dismissed as academic.

In the Matter of DARCEL D. CLARK, Respondent, v GEORGE R.
VILLEGAS, Respondent, and DEWAYNE ROBINSON, Appellant.

Submitted September 5, 2017; decided March 29, 2018

Reported below, 153 AD3d 437.

Motion for leave to appeal granted. Motion for poor person relief granted. Motion for a stay granted.

Chief Judge DiFiore and Judge Feinman taking no part.

HSBC BANK USA, N.A., Respondent, v CHRISTOPHER N. CROSSLAND, Appellant, et al., Defendants.

Submitted February 13, 2018; decided March 29, 2018

Reported below, 2017 NY Slip Op 86445(U).

Motion for reargument of motion for leave to appeal etc. denied [*see* 30 NY3d 1047 (2018)]. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents.

Submitted January 16, 2018; decided March 29, 2018

Reported below, 2009 NY Slip Op 83711(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of NATASHA W., Respondent, v NEW YORK STATE OFFICE OF CHILDREN AND FAMILY SERVICES et al., Appellants, and NEW YORK CITY ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted March 26, 2018; decided March 29, 2018

Reported below, 145 AD3d 401.

Motion by NYU Family Defense Clinic, et al. for leave to file a brief *amici curiae* on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HASSAN RKEIN, Appellant.

Submitted March 26, 2018; decided March 29, 2018

Reported below, 152 AD3d 434.

Motion for assignment of counsel granted and Christina A. Swarns, Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

ANNA PEZHMAN, Appellant, v CHANEL et al., Respondents.

Submitted January 22, 2018; decided March 29, 2018

Reported below, 157 AD3d 417.

Motion for leave to appeal denied. Motion for ancillary relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

Judge FEINMAN taking no part.

THE ALLIANCE TO END CHICKENS AS KAPOROS et al., Appellants,
v NEW YORK CITY POLICE DEPARTMENT et al., Respondents,
et al., Defendants.

Submitted March 26, 2018; decided March 29, 2018

Reported below, 152 AD3d 113.

Motion by Agudath Israel of America for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge FEINMAN taking no part.

VELERON HOLDING, B.V., Individually and as Assignee of OJSC
Russian Machines, Appellant, v MORGAN STANLEY et al.,
Respondents.

Submitted January 29, 2018; decided March 29, 2018

Reported below, 151 AD3d 597.

Motion for reargument of motion for leave to appeal denied [*see* 30 NY3d 908 (2017)].

Chief Judge DiFIORE taking no part.

[97 NE3d 403, 73 NYS3d 794]

In the Matter of ROBERT L. CICALÉ, a Judge of the District Court of Suffolk County.

Decided April 2, 2018

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, of whether the Honorable Robert L. Cicale should be suspended from the office of Judge of the District Court of Suffolk County.

HEADNOTE**Judges — Suspension from Office**

The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, suspended a District Court Judge from office, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Robert L. Cicale is suspended, with pay, effective immediately, from the office of Judge of the District Court of Suffolk County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[97 NE3d 403, 73 NYS3d 794]

In the Matter of LETICIA D. ASTACIO, a Judge of the City Court of the City of Rochester.

Decided April 11, 2018

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether the Honorable Leticia D. Astacio should be suspended from the office of Judge of the City Court of the City of Rochester.

HEADNOTE**Judges — Suspension from Office**

The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a City Court Judge from office, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Leticia D. Astacio is suspended, with pay, effective immediately, from the office of Judge of the City Court of the City of Rochester, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

In the Matter of ANGELICAH U. et al., Children Alleged to be Permanently Neglected. REGGIE U., Appellant; CHILDREN'S AID SOCIETY, Respondent, et al., Respondent.

Submitted January 8, 2018; decided March 22, 2018

Reported below, 155 AD3d 455.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

CITIMORTGAGE, INC., Successor by Merger to ABN AMRO MORTGAGE GROUP, INC., Respondent, v DENNIS ROCKEFELLER, Also Known as DENNIS D. ROCKEFELLER, Appellant, et al., Defendants.

Submitted January 22, 2018; decided March 22, 2018

Reported below, 155 AD3d 998.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RICHARD CROAK, a Suspended Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Decided March 22, 2018

Reported below, 156 AD3d 1111.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ALICE LARAINÉ DIMERY, Appellant, v ULSTER SAVINGS BANK, Respondent.

ULSTER SAVINGS BANK, Respondent, v A. LARAINÉ DIMERY, Appellant.

Decided March 22, 2018

Reported below, 2017 NY Slip Op 85695(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of TSIPORA HILLER, Appellant, v DOV HILLER, Respondent.

Submitted January 22, 2018; decided March 22, 2018

Reported below, 156 AD3d 788.

Motion for leave to appeal dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511). Motion for poor person relief dismissed as academic.

RHONDA LEWIS et al., Appellants, v ROBERT JUTKOWITZ et al., Defendants, and WILLIAM GAEL et al., Respondents.

Submitted January 8, 2018; decided March 22, 2018

Reported below, 136 AD3d 875.

Motion for reargument of motion for leave to appeal denied [*see* 30 NY3d 1014 (2017)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR ALVAREZ, Appellant.

Submitted March 5, 2018; decided March 22, 2018

Reported below, 2017 NY Slip Op 87246(U).

Motion for assignment of counsel granted and Christina A. Swarns, Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK by ERIC T. SCHNEIDERMAN, Respondent, v CREDIT SUISSE SECURITIES (USA) LLC, Formerly Known as CREDIT SUISSE FIRST BOSTON LLC, et al., Appellants.

Submitted February 13, 2018; decided March 22, 2018

Reported below, 145 AD3d 533.

Motion by Jonathan Lippman et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judges GARCIA and WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RAYMOND CRESPO, Respondent.

Decided March 22, 2018

Reported below, 144 AD3d 461.

Reargument ordered and case set down for argument at a future session of the Court.

Concur: Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON.

Taking no part: Judge FEINMAN.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICHOLAS HILL, Appellant.

Submitted March 12, 2018; decided March 22, 2018

Reported below, 150 AD3d 627.

Motion by The Bronx Defenders et al. for leave to file a letter brief amici curiae on the appeal herein granted and the proposed letter brief is accepted as filed. An original and two copies of the letter brief must be filed and the letter brief submitted in digital format within seven days.

Judge FEINMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOOVER
TREVOAE JOYNER, Appellant.

Submitted February 26, 2018; decided March 22, 2018

Reported below, 156 AD3d 725.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK
POLLARD, Appellant.

Submitted February 20, 2018; decided March 22, 2018

Reported below, 57 Misc 3d 128(A), 2017 NY Slip Op 51164(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAYRA
RIVAS, Appellant.

Submitted March 19, 2018; decided March 22, 2018

Reported below, 56 Misc 3d 140(A), 2017 NY Slip Op 51101(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v NATAS-
CHA TIGER, Respondent.

Submitted March 12, 2018; decided March 22, 2018

Reported below, 149 AD3d 86.

Motion by Center for Appellate Litigation et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of QUEENS COLLEGE SPECIAL PROJECTS FUND,
INC., Respondent, v SAMARA NEWMAN, Also Known as SA-
MARA SWANSTON, et al., Appellants.

Submitted February 13, 2018; decided March 22, 2018

Reported below, 154 AD3d 943.

Motion for a stay dismissed as academic.

GLASCO WRIGHT, Appellant, v STATE OF NEW YORK, Respondent.
(Claim No. 126455.)

Decided March 22, 2018

Reported below, 156 AD3d 1413.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that the order appealed from does not
finally determine the action within the meaning of the Consti-
tution.

[98 NE3d 720, 74 NYS3d 804]

WAYNE SCHNAPP, Respondent, v MILLER'S LAUNCH, INC., Appel-
lant.

Decided April 26, 2018

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 23, 2017. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Lucy Billings, J.; op 48 Misc 3d 1217[A], 2014 NY Slip Op 51943[U] [2014]), which had, to the extent appealed from as limited by the briefs, granted defendant's motion for summary judgment dismissing the complaint; and (2) denied the motion. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as reversed by . . . this Court, properly made?"

In an action pursuant to 33 USC § 905 (b) seeking damages for personal injuries allegedly suffered by plaintiff when he embarked upon defendant's vessel by jumping from a bulkhead approximately 40 inches from the deck of the vessel, Supreme

Court granted defendant's motion for summary judgment and dismissed the complaint. The Appellate Division reversed the Supreme Court order and denied defendant's motion, finding that, under the circumstances, there were issues of fact as to whether defendant violated the turnover duty (turning over the vessel in a reasonably safe condition) as well as the duty to intervene (intervening if it had knowledge of an unsafe condition under the stevedore's control).

Schnapp v Miller's Launch, Inc., 150 AD3d 32, affirmed.

HEADNOTE

Workers' Compensation — Longshore and Harbor Workers' Compensation Act — Liability of Vessel Owner — Duty of Care

In a personal injury action, an order of the Appellate Division, which denied defendant's motion for summary judgment dismissing the complaint, was affirmed. Triable issues of fact existed as to whether defendant breached a duty of care it owed to plaintiff pursuant to the Longshore and Harbor Workers' Compensation Act (33 USC § 905 [b]).

APPEARANCES OF COUNSEL

Rubin, Fiorella & Friedman LLP, New York City (*Michael E. Stern* and *James E. Mercante* of counsel), for appellant.

Hofmann & Schweitzer, New York City (*Paul T. Hofmann* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. Triable issues of fact exist as to whether defendant Miller's Launch, Inc. breached a duty of care it owed to plaintiff Wayne Schnapp pursuant to the Longshore and Harbor Workers' Compensation Act (33 USC § 905 [b]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia and Wilson. Taking no part: Judge Feinman.

[98 NE3d 720, 74 NYS3d 805]

SKANSKA USA BUILDING INC., Appellant, v ATLANTIC YARDS B2 OWNER, LLC, et al., Respondents, et al., Defendants.

Argued March 20, 2018; decided April 26, 2018

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an or-

der of that Court, entered October 20, 2016. The Appellate Division order, insofar as appealed from, affirmed so much of an order of the Supreme Court, New York County (Saliann Scarpulla, J.; op 2015 NY Slip Op 31258[U] [2015]) as had (1) granted defendant Atlantic Yards B2 Owner, LLC's (B2 Owner) and Forest City Ratner Companies, LLC's (FCRC) motion to dismiss subpart (f) of plaintiff's first cause of action alleging that B2 Owner breached a construction management agreement by failing to provide security for payment under Lien Law § 5; and (2) denied plaintiff's motion to disqualify counsel for B2 Owner and FCRC. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court, on the law, to the extent of denying defendants['] motion to dismiss a certain subpart of the first cause of action and granting their motion to dismiss the third cause of action properly made?"

Skanska USA Bldg. Inc. v Atlantic Yards B2 Owner, LLC, 146 AD3d 1, affirmed.

HEADNOTE

Contracts — Construction — Contract for Public Improvement — No Provision Requiring Compliance with Lien Law § 5

In an action arising out of a construction management and fabrication services agreement under which plaintiff agreed to construct a building for defendant public improvement project developer in exchange for approximately \$116 million, the courts below properly dismissed plaintiff's claim that defendant breached the agreement by allegedly failing to comply with Lien Law § 5. Under that section, where there is no public fund to finance a public improvement with an estimated cost in excess of \$250,000, the public owner shall require the private entity for whom the public improvement is being made to post, or cause to be posted, a bond or other form of undertaking guaranteeing prompt payment of moneys due to the contractor and subcontractors. Here, plaintiff failed to identify which, if any, provision of the agreement between it and defendant was breached. Unlike the development and lease agreements between the public owner and defendant's affiliates, to which plaintiff was not a party, the construction management and fabrication services agreement contained no express provision requiring compliance with the Lien Law. The typical choice-of-law provision in the contract, providing that the agreement and disputes arising thereunder were governed by New York law, could not be read as imposing such a contractual obligation.

APPEARANCES OF COUNSEL

Peckar & Abramson, P.C., New York City (*Bruce D. Meller* and *Peter E. Moran* of counsel), for appellant.

Kramer Levin Naftalis & Frankel LLP, New York City (*Harold P. Weinberger* and *Natan M. Hamerman* of counsel), and *Troutman Sanders LLP*, New York City (*Aaron Abraham*, *Kevin P. Wallace* and *Stephen G. Rinehart* of counsel), for respondents.

Couch White, LLP, Albany (Joel M. Howard, III, Jennifer Kavney Harvey and Desiree S. Murnane of counsel), for Associated General Contractors of New York State, LLC, amicus curiae.

Skadden, Arps, Slate, Meagher & Flom LLP, New York City (Jonathan Frank and Jeffrey Geier of counsel), *Helene Fromm, Acting General Counsel, Metropolitan Transportation Authority*, New York City, and *Michael Cusack, General Counsel, Dormitory Authority of the State of New York*, Albany, for New York State Urban Development Corporation and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed, with costs, and the certified question answered in the affirmative. We conclude that the courts below properly dismissed plaintiff Skanska USA Building Inc.'s claim that defendant Atlantic Yards B2 Owner, LLC (B2 Owner) breached the Construction Management and Fabrication Services Agreement (the CM Agreement) by allegedly failing to comply with Lien Law § 5. Plaintiff failed to allege the existence of any provision in the CM Agreement requiring compliance with that statute.

In July 2006, the New York State Urban Development Corporation d/b/a Empire State Development (ESD), a public benefit corporation, adopted a plan for Atlantic Yards, a 22-acre mixed-use development project in Brooklyn. ESD, which is not a party to this action, entered into a Development Agreement with nonparty entities affiliated with B2 Owner to develop the project site. ESD also entered into a Lease Agreement with FC Atlantic Yards B2, LLC (Tenant), another nonparty affiliate of B2 Owner, to lease a parcel of land within the Atlantic Yards site to Tenant. Under the Lease Agreement, Tenant agreed that certain buildings would be constructed on the leased premises, including the B2 Building, a proposed 34-floor residential high-rise. Plaintiff is not a party to either the Development Agreement or the Lease Agreement. Those agreements required Tenant to "satisfy all requirements of Section 5 of the New York State Lien Law . . . as such requirements and law are interpreted from time to time by [ESD]." Pursuant to the terms of the Lease Agreement, nonparty Forest City Enterprise, Inc. (FCE), a minority owner of B2 Owner, made a

Guaranty in favor of ESD which, among other things, guaranteed Tenant's completion of the construction work and that Tenant would use all monies disbursed by the lender to pay all costs, expenses, and liabilities—including construction costs—incurred in connection with the guaranteed work.

Plaintiff and B2 Owner separately entered into the CM Agreement, pursuant to which plaintiff agreed to construct the B2 Building in exchange for approximately \$116 million. B2 Owner issued to plaintiff a "Notice to Proceed" under the CM Agreement, setting the substantial completion deadline for the B2 Building. Construction was delayed for reasons disputed by the parties. After the deadline passed, plaintiff sent B2 Owner a notice of its intent to terminate the CM Agreement asserting, among other things, that B2 Owner breached the CM Agreement by failing to post a bond or undertaking in violation of Lien Law § 5. That statute provides, in relevant part, that where there is no public fund to finance a public improvement with an estimated cost in excess of \$250,000,

"the chief financial officer of the public owner shall require the private entity for whom the public improvement is being made to post, or cause to be posted, a bond or other form of undertaking guaranteeing prompt payment of moneys due to the contractor, his or her subcontractors and to all persons furnishing labor or materials" (Lien Law § 5).

Plaintiff subsequently stopped work on the B2 Building and purported to terminate the CM Agreement. Thereafter, plaintiff commenced this action against B2 Owner and Forest City Ratner Companies, LLC (FCRC), asserting, among other things, a claim for breach of the CM Agreement premised on B2 Owner's alleged failure to comply with Lien Law § 5.¹ Defendants moved to dismiss that claim pursuant to CPLR 3211 (a) (1) and (7), and Supreme Court granted the motion.

Upon plaintiff's appeal, the Appellate Division, with two Justices dissenting in part, modified and, as so modified, affirmed (146 AD3d 1 [1st Dept 2016]). As relevant here, the Appellate Division affirmed the dismissal of plaintiff's contract

1. FCRC is an affiliate of B2 Owner, which developed the modular construction concept that was to be used to erect the B2 Building. It was not a party to the CM Agreement.

claim based on the alleged violation of Lien Law § 5.² The Court held that the Guaranty issued by FCE satisfied the mandate of section 5, while the dissenting Justices would have held that the Guaranty did not qualify as an “other form of undertaking” within the meaning of the statute. The Appellate Division granted plaintiff leave to appeal, certifying the question of whether its order was properly made (2017 NY Slip Op 66053[U] [1st Dept 2017]).

It is axiomatic that, “when parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms” (*W.W.W. Assoc. v Giancontieri*, 77 NY2d 157, 162 [1990]; see *Reiss v Financial Performance Corp.*, 97 NY2d 195, 198 [2001]). In that regard, “[c]ourts may not, through their interpretation of a contract, add or excise terms or distort the meaning of any particular words or phrases, thereby creating a new contract under the guise of interpreting the parties’ own agreements” (*Nomura Home Equity Loan, Inc., Series 2006-FM2 v Nomura Credit & Capital, Inc.*, 30 NY3d 572, 581 [2017]). “We have . . . emphasized this rule’s special import ‘in . . . context[s] . . . where commercial certainty is a paramount concern, and where . . . the instrument [at issue] was negotiated between sophisticated . . . business people . . . at arm’s length’ ” (*Vermont Teddy Bear Co. v 538 Madison Realty Co.*, 1 NY3d 470, 475 [2004], quoting *Matter of Wallace v 600 Partners Co.*, 86 NY2d 543, 548 [1995]).

Plaintiff’s complaint does not identify which, if any, provision or provisions of the CM Agreement between plaintiff and B2 Owner were purportedly breached. Unlike the Development and Lease Agreements—to which plaintiff is not a party—the CM Agreement contains no express provision requiring compliance with the Lien Law. Plaintiff nevertheless maintains that section 5 of the Lien Law should be “read into” the CM Agreement because the contract is governed by New York law. Specifically, plaintiff points to section 17.3 of the CM Agreement, which provides that “[t]he construction, validity and performance of [the CM Agreement] shall be exclusively governed by the laws of the State of New York, excluding any provisions or principles thereof which would require the application of the laws of a different jurisdiction.” However, this is a typical choice-of-law provision that we do not read as imposing a

2. The Appellate Division also affirmed Supreme Court’s denial of plaintiff’s motion to disqualify defendants’ counsel.

contractual obligation here. The mere fact that an agreement, and disputes arising thereunder, are governed by the law of a particular jurisdiction does not transform all statutory requirements that may otherwise be imposed under that body of law into *contractual* obligations, and we decline to interpret the CM Agreement as “impliedly stating something which [plaintiff and B2 Owner] have neglected to specifically include” (*Vermont Teddy Bear*, 1 NY3d at 475, quoting *Rowe v Great Atl. & Pac. Tea Co.*, 46 NY2d 62, 72 [1978]; see also *Goncalves v Regent Intl. Hotels*, 58 NY2d 206, 220 [1983]).

Accordingly, plaintiff’s claim that B2 Owner breached the CM Agreement by failing to comply with section 5 of the Lien Law was properly dismissed. We, therefore, have no occasion to pass on, and the Appellate Division did not need to reach, the merits of the parties’ arguments concerning either the interpretation of that statute or whether the Guaranty satisfied its mandate. Plaintiff’s remaining arguments lack merit.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Wilson and Feinman concur; Judge Garcia taking no part.

Order insofar as appealed from affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[98 NE3d 723, 74 NYS3d 808]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DARIA N. EPAKCHI, Respondent.

Decided May 1, 2018

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Ninth and Tenth Judicial Districts, entered June 23, 2016. The Appellate Term (1) reversed, as a matter of discretion in the interest of justice, a judgment of the District Court of Suffolk County, Suffolk County Traffic and Parking Violations Agency (Paul Senzer, J.H.O.), which had convicted defendant, after a nonjury trial, of failing to stop at a stop sign; (2) vacated an order of that District Court (Allen S. Mathers, J.H.O.), brought up for review on the appeal to the Appellate Term, which had denied defendant’s motion to dismiss the simplified traffic information; and (3) granted defendant’s motion.

People v Epakchi, 52 Misc 3d 134(A), 2016 NY Slip Op 51020(U), reversed.

HEADNOTE

Crimes — Appeal — Appeal to County Court or Appellate Term from Local Criminal Court — How Appeal Taken

Defendant's appeal in a criminal case that originated in a local criminal court, the proceedings of which were not transcribed by a court stenographer, was not properly taken due to the failure to serve or file an affidavit of errors (*see* CPL 460.10 [3]).

APPEARANCES OF COUNSEL

Suffolk County Traffic Prosecutor's Office, Hauppauge (*Justin W. Smiloff* of counsel), for appellant.

Law Offices of David A. Day, P.C., Glen Cove (*David A. Day* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, and case remitted to the Appellate Term, Second Department, Ninth and Tenth Judicial Districts, for further proceedings. Because the case originated in a local criminal court and the proceedings were not transcribed by a court stenographer, the appeal was not properly taken due to the failure to serve or file an affidavit of errors (*see* CPL 460.10 [3]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

[98 NE3d 724, 74 NYS3d 808]

In the Matter of Terrence C. O'Connor, a Judge of the Civil Court of the City of New York, Queens County.

Decided May 3, 2018

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether the Honorable Terrence C. O'Connor should be suspended from the office of Judge of the Civil Court of the City of New York, Queens County.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Civil Court Judge

from office, with pay, effective immediately, pending review of a determination of the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

Addabbo & Greenberg, Esqs., Forest Hills (*Dominic L. Addabbo* of counsel), and *Edelstein & Grossman, Esqs.*, New York City (*Jonathan I. Edelstein* of counsel), for petitioner.

Robert H. Tembeckjian, New York City, for New York State Commission on Judicial Conduct, respondent.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Terrence C. O'Connor is suspended, with pay, effective immediately, from the office of Judge of Civil Court of the City of New York, Queens County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), pending review of a determination of the State Commission on Judicial Conduct.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

[98 NE3d 724, 74 NYS3d 809]

In the Matter of LETICIA D. ASTACIO, a Judge of the Rochester City Court, Monroe County.

Decided May 8, 2018

SUMMARY

CONSIDERATION, by the Court of Appeals, of whether the suspension of the Honorable Leticia D. Astacio from the office of Judge of the City Court of Rochester, Monroe County, should be continued.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on consideration of the continuation of the suspension, with pay, of a City Court Judge from office, continued the suspension of the City Court Judge, with pay, effective immediately.

APPEARANCES OF COUNSEL

Robert F. Julian, Utica, for Hon. Leticia D. Astacio.

Robert H. Tembeckjian for New York State Commission on Judicial Conduct.

OPINION OF THE COURT

On consideration of the continuation of this Court's April 11, 2018 suspension, with pay, of the Honorable Leticia D. Astacio from the office of Judge of Rochester City Court, Monroe County, it is determined that the suspension continue, with pay, effective immediately.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

[98 NE3d 725, 74 NYS3d 809]

In the Matter of ROBERT L. CICALÉ, a Judge of the District Court of Suffolk County.

Decided May 8, 2018

SUMMARY

CONSIDERATION, by the Court of Appeals, of whether the suspension of the Honorable Robert L. Cicalé from the office of Judge of the District Court of Suffolk County should be continued.

HEADNOTE**Judges — Suspension from Office**

The Court of Appeals, on consideration of the continuation of the suspension, with pay, of a District Court Judge from office, continued the suspension of the District Court Judge, with pay, effective immediately.

APPEARANCES OF COUNSEL

William D. Wexler, North Babylon, for Hon. Robert L. Cicalé.

OPINION OF THE COURT

On consideration of the continuation of this Court's April 2, 2018 suspension, with pay, of the Honorable Robert L. Cicalé from the office of Judge of District Court of Suffolk County, it is determined that the suspension continue, with pay, effective immediately.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.
